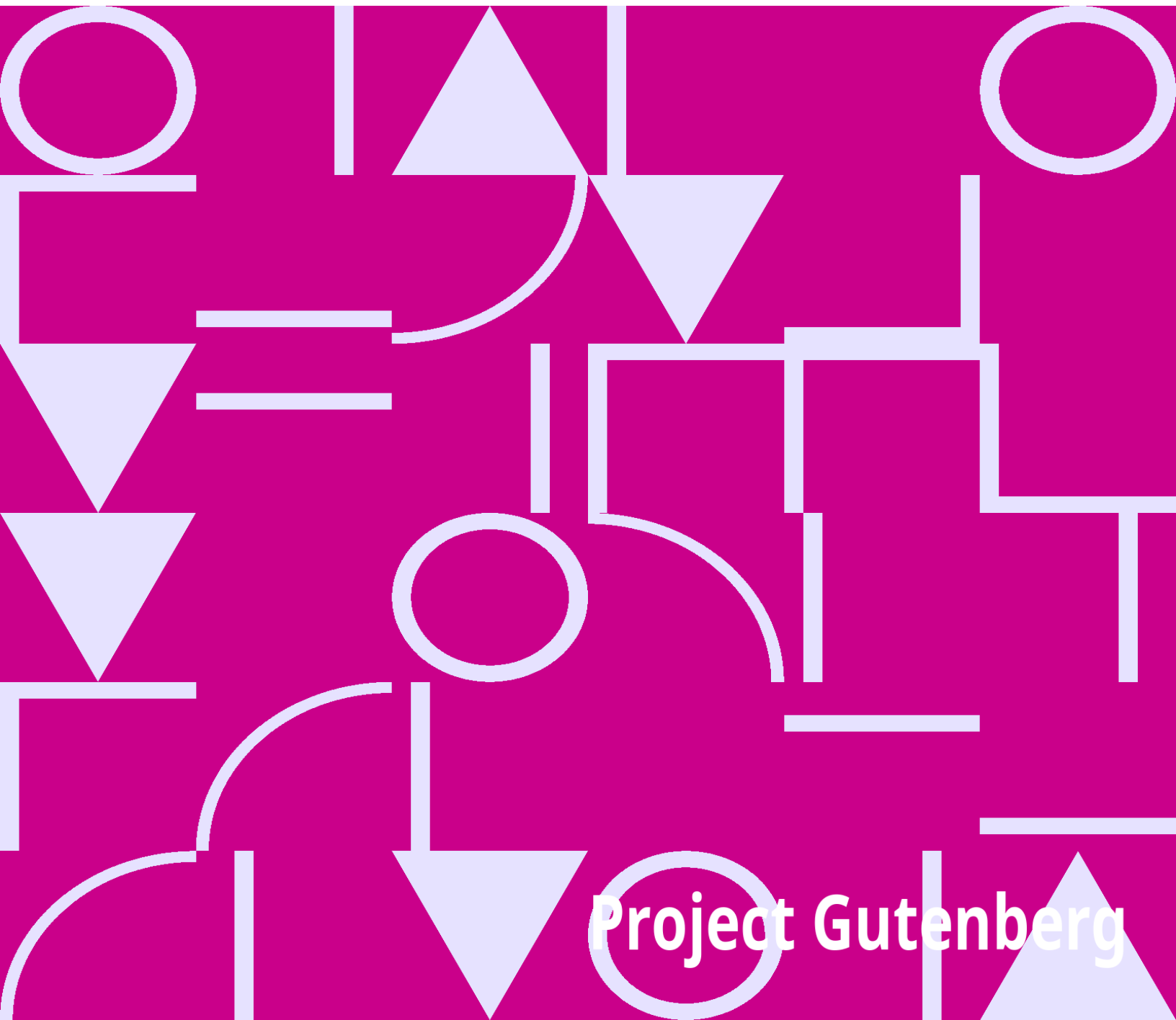


What Works: Schools Without Drugs

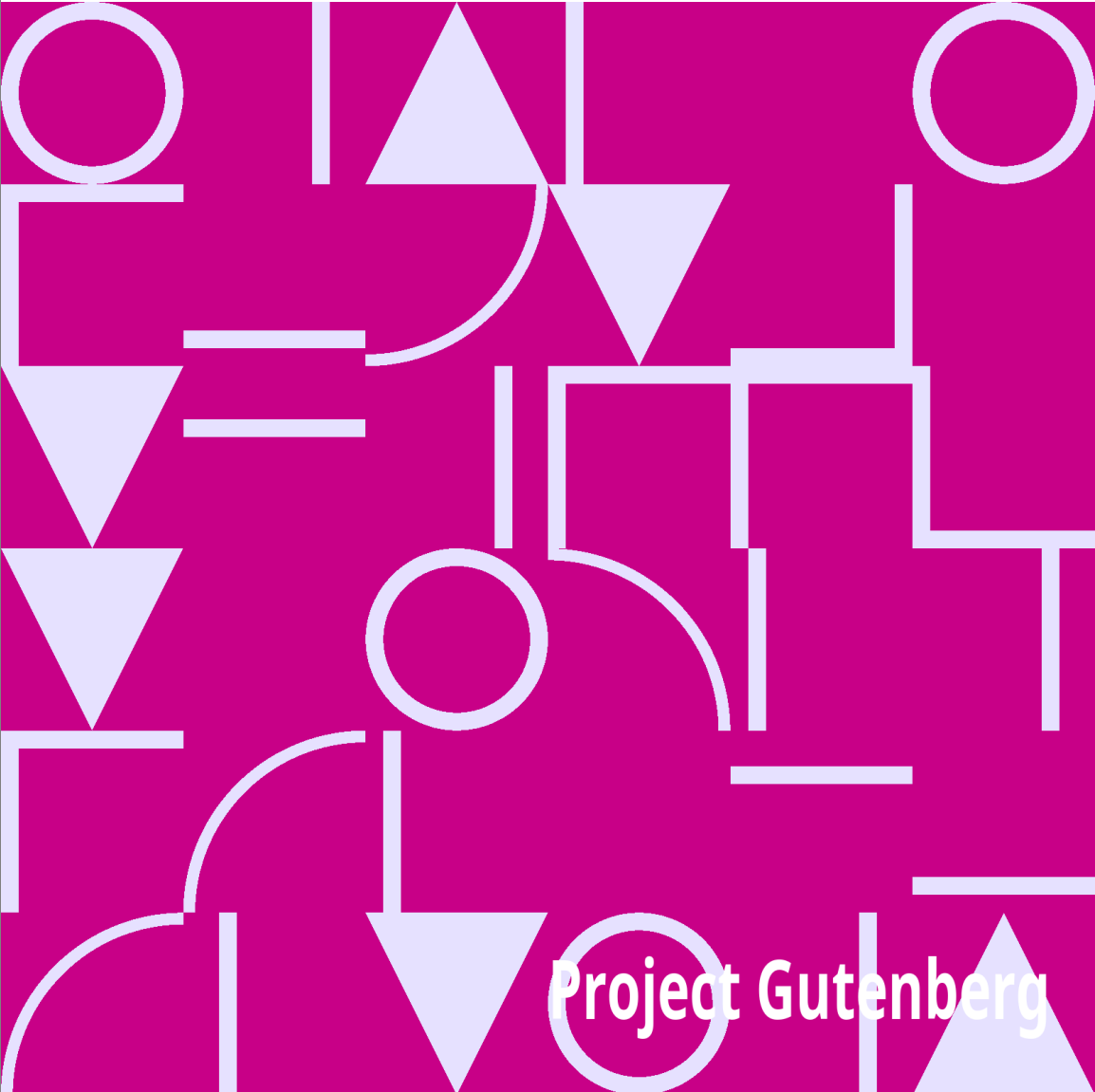
United States. Department of Education

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What Works: Schools Without Drugs

United States. Department of Education

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*** START OF THE PROJECT GUTENBERG EBOOK WHAT WORKS:
SCHOOLS WITHOUT DRUGS ***

What Works

***SCHOOLS
WITHOUT***

DRUGS

United States Department of Education
William J. Bennett, Secretary
1986

THE WHITE HOUSE

WASHINGTON

August 4, 1986

Drug and alcohol abuse touches all Americans in one form or another, but it is our children who are most vulnerable to its influence. As parents and teachers, we need to educate ourselves about the dangers of drugs so that we can then teach our children. And we must go further still by convincing them that drugs are morally wrong.

Now, as more and more individuals and groups are speaking out, young people are finding it easier to *say no* to drugs. Encouraged by a growing public outcry and their own strength of conviction, students are forming peer support groups in opposition to drug use. It has been encouraging to see how willingly young people take healthy attitudes and ideas to heart when they are exposed to an environment that fosters those values.

Outside the home, the school is the most influential environment for our children. This means that schools must protect children from the presence of drugs, and nurture values that help them reject drugs.

Schools Without Drugs provides the kind of practical knowledge parents, educators, students and communities can use to keep their schools drug-free. Only if our schools are free from drugs can we protect our children and insure that they can get on with the enterprise of learning.

Uncy Reagan

INTRODUCTION

"It is a sad and sobering reality that trying drugs is no longer the exception among high school students. It is the norm."

—California Attorney General John Van De Kemp *Los Angeles Times*, April 30, 1986

When 13- to 18-year-olds were asked to name the biggest problems facing young people today, drugs led their list. The proportion of teens with this perception has risen steadily in recent years. No other issue approaches this level of concern.

Four out of five teens believe current laws against both the sale and the use of drugs (including marijuana) are not strict enough.

—The Gallup Youth Surveys, 1985 and 1986

"Policy is useless without action! Drugs do not have to be tolerated on our school campuses. Policy to that effect is almost universally on the books. Drugs remain on campus because consistent, equitable and committed enforcement is lacking."

—Bill Rudolph, Principal, Northside High School, Atlanta, Georgia
Testimony submitted to the U.S. Senate Committee on Special Investigations,
July 1984

"... We have a right to be protected from drugs."

—Cicely Senior, a seventh-grader,
McFarland Junior High, Washington, D.C.

William J. Bennett
Secretary of Education

The foremost responsibility of any society is to nurture and protect its children. In America today, the most serious threat to the health and well-being of our children is drug use.

For the past year and a half, I have had the privilege of teaching our children in the classrooms of this country. I have met some outstanding teachers and administrators and many wonderful children. I have taken time during these visits to discuss the problem of drug use with educators and with police officers working in drug enforcement across the country. Their experience confirms the information reported in major national studies: drug use by children is at alarming levels. Use of some of the most harmful drugs is increasing. Even more troubling is the fact that children are using drugs at younger ages. Students today identify drugs as a major problem among their schoolmates as early as the fourth, fifth, and sixth grades.

Drug use impairs memory, alertness, and achievement. Drugs erode the capacity of students to perform in school, to think and act responsibly. The consequences of using drugs can last a lifetime. The student who cannot read at age 8 can, with effort, be taught at 9. But when a student clouds his mind with drugs, he may become a lifelong casualty. Research tells us that students who use marijuana regularly are twice as likely as their classmates to average D's and F's, and we know that drop-outs are twice as likely to be frequent drug users as graduates.

In addition, drug use disrupts the entire school. When drug use and drug dealing are rampant—when many students often do not show up for class and teachers cannot control them when they do—education throughout the school suffers.

Drug use is found among students in the city and country, among the rich, the poor, and the middle class. Many schools have yet to implement effective drug enforcement measures. In some schools, drug deals at lunch are common. In others, intruders regularly enter the building to sell drugs to students. Even schools with strict drug policies on paper do not always enforce them effectively.

Schools Without Drugs provides a practical synthesis of the most reliable and significant findings available on drug use by school-age youth. It tells how extensive drug use is and how dangerous it is. It tells how drug use starts, how it progresses, and how it can be identified. *Most important, it tells how it can be stopped.* It recommends strategies—and describes particular communities—that have succeeded in beating drugs. It concludes with a list of resources and organizations that parents, students, and educators can turn to for help.

This book is designed to be used by parents, teachers, principals, religious and community leaders, and all other adults—and students—who want to know what works in drug use prevention. It emphasizes concrete and practical information. An earlier book, a summary of research findings on teaching and learning called *What Works*, has already proved useful to parents, teachers, and administrators. I hope this book will be as useful to the American people.

This book focuses on preventing drug use. It should be emphasized that the term drug use, as contained in the recommendations in the book, includes the

use of alcohol by children. Alcohol is an illegal drug for minors and should be treated as such. This book does not discuss techniques for treating drug users. Treatment usually requires professional help; treatment services are included in the resources section at the end of the book. But the purpose of the book is to help prevent drug use in the first place.

The information in this book is based on the research of drug prevention experts, and on interviews with parent organizations and school officials working in drug prevention in all 50 States and the District of Columbia. Although this volume is a product of the U.S. Department of Education, I am grateful for the assistance the Department received from groups and individuals across the country. It was not possible to include all the information we gathered, but I wish to thank the many groups that offered their help.

No one can be a good citizen alone, as Plato tells us. No one is going to solve our drug problem alone, either. But when parents, schools, and communities pull together, drugs can be stopped. Drugs have been beaten in schools like Northside High School in Atlanta, profiled in this book. Preventing drug experimentation is the key. It requires drug education starting in the first grades of elementary school. It requires clear policies against drug use and consistent enforcement of those policies. And it requires the cooperation of school boards, principals, teachers, law enforcement personnel, parents, and students.

Schools are uniquely situated to be part of the solution to student drug use. Children spend much of their time in school. Furthermore, schools, along with families and religious institutions, are major influences in transmitting ideals and standards of right and wrong. Thus, although the problems of drug use extend far beyond the schools, it is critical that our offensive on drugs center in the schools.

My purpose in releasing this handbook, therefore, is to help all of us—parents and children, teachers and principals, legislators and taxpayers—work more effectively in combating drug use. Knowing the dangers of drugs is not enough. Each of us must also act to prevent the sale and use of drugs. We must work to see that drug use is not tolerated in our homes, in our schools, or in our communities. Because of drugs, children are failing, suffering, and dying. We have to get tough, and we have to do it now.

WHAT CAN WE DO?

A Plan for Achieving Schools Without Drugs

PARENTS:

1. Teach standards of right and wrong, and demonstrate these standards through personal example.
2. Help children to resist peer pressure to use drugs by supervising their activities, knowing who their friends are, and talking with them about their interests and problems.
3. Be knowledgeable about drugs and signs of drug use. When symptoms are observed, respond promptly.

SCHOOLS:

4. Determine the extent and character of drug use and establish a means of monitoring that use regularly.
5. Establish clear and specific rules regarding drug use that include strong corrective actions.
6. Enforce established policies against drug use fairly and consistently. Implement security measures to eliminate drugs on school premises and at school functions.
7. Implement a comprehensive drug prevention curriculum for kindergarten through grade 12, teaching that drug use is wrong and harmful and supporting and strengthening resistance to drugs.

8. Reach out to the community for support and assistance in making the school's antidrug policy and program work. Develop collaborative arrangements in which school personnel, parents, school boards, law enforcement officers, treatment organizations, and private groups can work together to provide necessary resources.

STUDENTS:

9. Learn about the effects of drug use, the reasons why drugs are harmful, and ways to resist pressures to try drugs.

10. Use an understanding of the danger posed by drugs to help other students avoid them. Encourage other students to resist drugs, persuade those using drugs to seek help, and report those selling drugs to parents and the school principal.

COMMUNITIES:

11. Help schools fight drugs by providing them with the expertise and financial resources of community groups and agencies.

12. Involve local law enforcement agencies in all aspects of drug prevention: assessment, enforcement, and education. The police and courts should have well-established and mutually supportive relationships with the schools.

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"I felt depressed and hurt all the time. I hated myself for the way I hurt my parents and treated them so cruelly, and for the way I treated others. I hated myself the most, though, for the way I treated myself. I would take drugs until I overdosed, and fell further and further in school and work and relationships with others. I just didn't care anymore whether I lived or died. I stopped going to school altogether.... I felt constantly depressed and began having thoughts of suicide, which scared me a lot! I didn't know where to turn...."

—"Stewart," a high school student

CHILDREN AND DRUGS

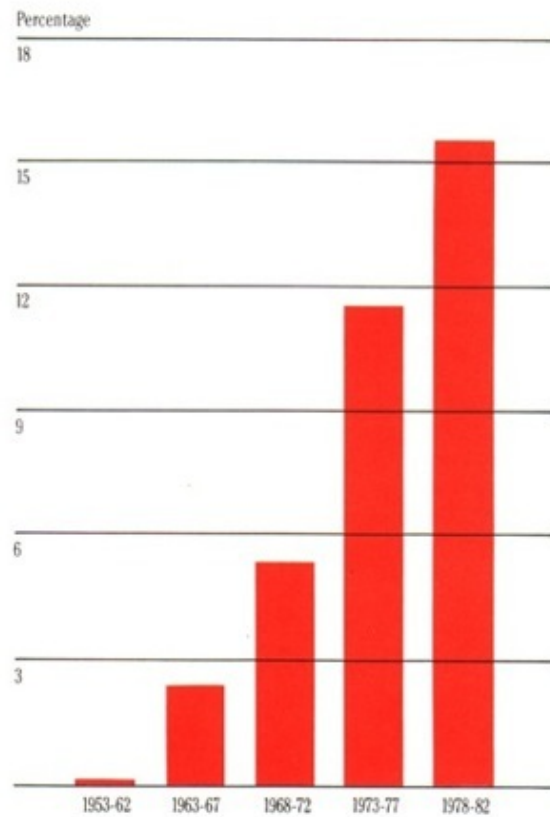


Chart 1

Percentage of 13-Year-Olds Who Have Used Marijuana, 1953-1982

Source: National Institute on Drug Abuse Household Survey 1982

Children and Drugs

Americans have consistently identified drug use among the top problems confronting the Nation's schools. Yet many do not recognize the degree to which their own children, their own schools, and their own communities are at risk.

Research shows that drug use among children is 10 times more prevalent than parents suspect. In addition, many students know that their parents do not recognize the extent of drug use, and this leads them to believe that they can use drugs with impunity.

School administrators and teachers often are unaware that their students are using and selling drugs, frequently on school property. School officials who are aware of the situation in their schools admit, as has Ralph Egers, superintendent of schools in South Portland, Maine, that "We'd like to think that our kids don't have this problem, but the brightest kid from the best family in the community could have the problem."

The facts are:

- Drug use is not confined to certain population groups or to certain economic levels in our society; it affects our entire Nation.
- Drugs are a serious problem not only in high schools, but now in middle and elementary schools as well.
- All illegal drugs are dangerous; there is no such thing as safe or responsible use of illegal drugs.
- Although drug trafficking is controlled by adults, the immediate source of drugs for most students is other students.

Continuing misconceptions about the drug problem stand in the way of corrective action. The following section outlines the nature and extent of the problem and summarizes the latest research on the effects of drugs on students and schools.

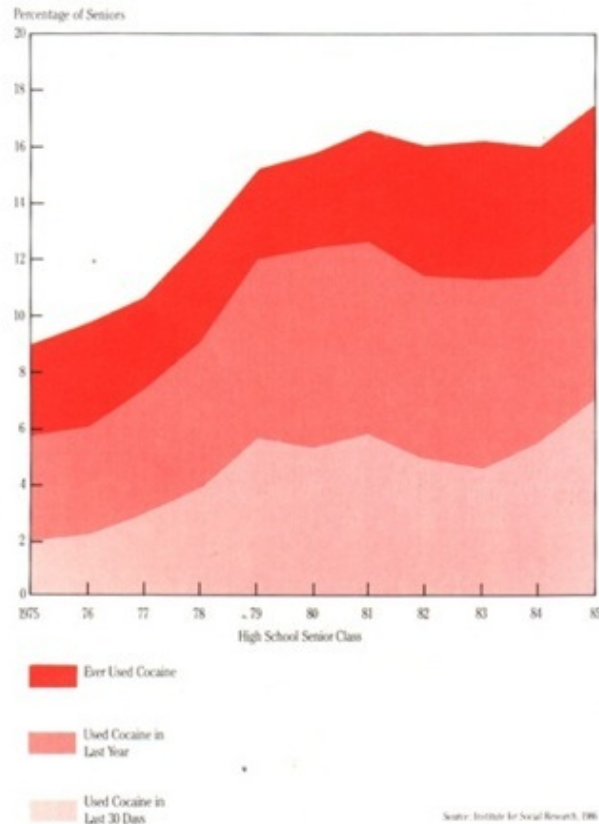


Chart 2
Percentage of High School Seniors Who Have Used Cocaine
Source: Institute for Social Research 1986

Extent of Drug Use

Drug use is widespread among American schoolchildren. The United States has the highest rate of teenage drug use of any industrialized nation. The drug problem in this country is 10 times greater than in Japan, for example. Sixty-one percent of high school seniors have used drugs. Marijuana use remains at an unacceptably high level; 41 percent of 1985 seniors reported using it in the last year, and 26 percent said they had used it at least once in the previous month. Thirteen percent of seniors indicated that they had used cocaine in the past year. This is the highest level ever observed, more than twice the proportion in 1975.

Many students purchase and use drugs at school. A recent study of teenagers contacting a cocaine hotline revealed that 57 percent of the respondents bought most of their drugs at school. Among 1985 high school seniors, one-third of the marijuana users reported that they had smoked marijuana at school. Of the seniors who used amphetamines during the past year, two-thirds reported having taken them at school.

The drug problem affects all types of students. All regions and all types of communities show high levels of drug use. Forty-three percent of 1985 high school seniors in nonmetropolitan areas reported illicit drug use in the previous year, while the rate for seniors in large metropolitan areas was 50 percent. Although higher proportions of males are involved in illicit drug use, especially heavy drug use, the gap between the sexes is lessening. The extent to which high school seniors reported having used marijuana is about the same for blacks and whites; for other types of drugs reported, use is slightly higher among whites.

Initial drug use occurs at an increasingly early age. The percentage of students using drugs by the sixth grade has tripled over the last decade. In the early 1960's, marijuana use was virtually nonexistent among 13-year-olds, but now about one in six 13-year-olds has used marijuana.

Fact Sheet

Drugs and Dependence

Drugs cause physical and emotional dependence. Users may develop an overwhelming craving for specific drugs, and their bodies may respond to the presence of drugs in ways that lead to increased drug use.

- Regular users of drugs develop *tolerance*, a need to take larger doses to get the same initial effect. They may respond by combining drugs—frequently with devastating results. Many teenage drug users calling a national cocaine hotline report that they take other drugs just to counteract the unpleasant effects of cocaine.

- Certain drugs, such as opiates and barbiturates, create *physical dependence*. With prolonged use, these drugs become part of the body chemistry. When a regular user stops taking the drug, the body experiences the physiological trauma known as *withdrawal*.
- *Psychological dependence* occurs when drug taking becomes the center of the user's life. Among children, psychological dependence erodes school performance and can destroy ties to family, friendships, outside interests, values, and goals. The child goes from taking drugs to feel good, to taking them to keep from feeling bad. Over time, drug use itself heightens the bad feelings and can leave the user suicidal. *More than half of all adolescent suicides are drug-related.*
- *Drugs and their harmful side effects can remain in the body long after use has stopped.* The extent to which a drug is retained in the body depends on the drug's chemical composition, that is, whether or not it is fat-soluble. Fat-soluble drugs such as marijuana, phencyclidine (PCP), and lysergic acid (LSD) seek out and settle in the fatty tissues. As a result, they build up in the fatty parts of the body such as the brain. Such accumulations of drugs and their slow release over time may cause delayed effects (flashbacks) weeks and even months after drug use has stopped.

How Drug Use Develops

Social influences play a key role in making drug use attractive to children.

The first temptations to use drugs may come in social situations in the form of pressures to "act grown up" and "have a good time" by smoking cigarettes or using alcohol or marijuana.

A 1983 *Weekly Reader* survey found that television and movies had the greatest influence on fourth graders in making drugs and alcohol seem attractive; other children had the second greatest influence. From the fifth grade on, peers played an increasingly important role, while television and movies consistently had the second greatest influence.

The survey offers insights into *why* students take drugs. For all children, the most important reason for taking marijuana is to "fit in with others." "To feel older" is the second main reason for children in grades four and five, and "to have a good time" for those in grades six to twelve. This finding reinforces the need for prevention programs beginning in the early grades—programs that focus on teaching children to resist peer pressure and on making worthwhile and enjoyable drug-free activities available to them.

Students who turn to more potent drugs usually do so after first using cigarettes and alcohol, and then marijuana. Initial attempts may not produce a "high"; however, students who continue to use drugs learn that drugs can alter their thoughts and feelings. *The greater a student's involvement with marijuana, the more likely it is the student will begin to use other drugs in conjunction with marijuana.*

Drug use frequently progresses in stages—from occasional use, to regular use, to multiple drug use, and ultimately to total dependency. With each successive stage, drug use intensifies, becomes more varied, and results in increasingly debilitating effects.

But this progression is not inevitable. Drug use can be stopped at any stage. However, the more involved children are with drugs, the more difficult it is for them to stop. *The best way to fight drug use is to begin prevention efforts before children start using drugs.* Prevention efforts that focus on young children are the most effective means to fight drug use.

Fact Sheet

Cocaine: Crack

Cocaine use is the fastest growing drug problem in America. Most alarming is the recent availability of cocaine in a cheap but potent form called crack or rock. Crack is a purified form of cocaine that is smoked.

- *Crack is inexpensive to try.* Crack is available for as little as \$10. As a result, the drug is affordable to many new users, including high school and even elementary school students.

- *Crack is easy to use.* It is sold in pieces resembling small white gravel or soap chips and is sometimes pressed into small pellets. Crack can be smoked in a pipe or put into a cigarette. Because the visible effects disappear within minutes after smoking, it can be used at almost any time during the day.
- *Crack is extremely addictive.* Crack is far more addictive than heroin or barbiturates. Because crack is smoked, it is quickly absorbed into the blood stream. It produces a feeling of extreme euphoria, peaking within seconds. The desire to repeat this sensation can cause addiction within a few days.
- *Crack leads to crime and severe psychological disorders.* Many youths, once addicted, have turned to stealing, prostitution, and drug dealing in order to support their habit. Continued use can produce violent behavior and psychotic states similar to schizophrenia.
- *Crack is deadly.* Cocaine in any form can cause cardiac arrest and death by interrupting the brain's control over the heart and respiratory system.

Effects of Drug Use

The drugs students are taking today are more potent, more dangerous, and more addictive than ever.

Adolescents are particularly vulnerable to the effects of drugs. Drugs threaten normal development in a number of ways:

- Drugs can interfere with memory, sensation, and perception. They distort experiences and cause a loss of self-control that can lead users to harm themselves and others.
- Drugs interfere with the brain's ability to take in, sort, and synthesize information. As a result, sensory information runs together, providing new sensations while blocking normal ability to understand the information received.
- Drugs can have an insidious effect on perception; for example, cocaine and amphetamines often give users a false sense of functioning at their best while on the drug.

Drug suppliers have responded to the increasing demand for drugs by developing new strains, producing reprocessed, purified drugs, and using underground laboratories to create more powerful forms of illegal drugs. Consequently, users are exposed to heightened or unknown levels of risk.

- The *marijuana* produced today is from five to 20 times stronger than that available as recently as 10 years ago. Regular use by adolescents has been associated with an "a motivational syndrome," characterized by apathy and loss of goals. Research has shown that severe psychological damage, including paranoia and psychosis, can occur when marijuana contains 2 percent THC, its major psychoactive ingredient. Since the early 1980s, most marijuana has contained from 4 to 6 percent THC—two to three times the amount capable of causing serious damage.
- *Crack*, now becoming widely available, is a purified and highly addictive form of cocaine.
- *Phencyclidine (PCP)*, first developed as an animal tranquilizer, has unpredictable and often violent effects. Often children do not even know that they are using this drug when PCP-laced parsley in cigarette form is passed off as marijuana, or when PCP in crystal form is sold as lysergic acid (LSD).
- Some of the new "*designer*" drugs, slight chemical variations of existing illegal drugs, have been known to cause permanent brain damage with a single dose.

Drug Use and Learning

Drugs erode the self-discipline and motivation necessary for learning. Pervasive drug use among students creates a climate in the schools that is destructive to learning. Research shows that drug use can cause a decline in academic performance. This has been found to be true for students who excelled in school prior to drug use as well as for those with academic or behavioral problems prior to use. According to one study, students using marijuana were twice as likely to average D's and F's as other students. The decline in grades often reverses when drug use is stopped.

Drug use is closely tied to truancy and dropping out of school. High school seniors who are heavy drug users are more than three times as likely to skip school as nonusers. About one-fifth of heavy users skipped 3 or more schooldays a month, more than six times the truancy rate of nonusers. In a Philadelphia study, dropouts were almost twice as likely to be frequent drug users as were high school graduates; four in five dropouts used drugs regularly.

Drug use is associated with crime and misconduct that disrupt the maintenance of an orderly and safe school conducive to learning. Drugs not only transform schools into marketplaces for dope deals, they also lead to the destruction of property and to classroom disorder. Among high school seniors, heavy drug users were two-and-one-half times as likely to vandalize school property and almost three times as likely to have been involved in a fight at school as nonusers. Students on drugs create a climate of apathy, disruption, and disrespect for others. For example, among teenage callers to a national cocaine hotline, 44 percent reported that they sold drugs and 31 percent said that they stole from family, friends, or employers to buy drugs. A drug-ridden environment is a strong deterrent to learning not only for drug users, but for other students as well.

A PLAN FOR ACTION

In order to combat student drug use most effectively, the entire community must be involved: parents, schools, students, law enforcement authorities, religious groups, social service agencies, and the media. They all must transmit a single consistent message that drug use is wrong, dangerous, and will not be tolerated. This message must be reinforced through strong, consistent law enforcement and disciplinary measures.

The following recommendations and examples describe actions that can be taken by parents, schools, students, and communities to stop drug use. These

recommendations are derived from research and from the experiences of schools throughout the country. They show that the drug problem can be overcome.

WHAT PARENTS CAN DO

Parents

Instilling Responsibility

Recommendation #1:

Teach standards of right and wrong and demonstrate these standards through personal example.

Children who are brought up to value individual responsibility and self-discipline and to have a clear sense of right and wrong are less likely to try drugs than those who are not. Parents can help to instill these ideals by:

- Setting a good example for children and not using drugs themselves.
- Explaining to their children at an early age that drug use is wrong, harmful, and unlawful, and reinforcing this teaching throughout adolescence.
- Encouraging self-discipline through giving children everyday duties and holding them accountable for their actions.
- Establishing standards of behavior concerning drugs, drinking, dating, curfews, and unsupervised activities, and enforcing them consistently and fairly.
- Encouraging their children to stand by their convictions when pressured to use drugs.

**Northside High School,
Atlanta, Georgia**

Northside High School enrolls 1,400 students from 52 neighborhoods. In 1977, drug use was so prevalent that the school was known as "Fantasy Island." Students smoked marijuana openly at school, and police were called to the school regularly.

The combined efforts of a highly committed group of parents and an effective new principal succeeded in solving Northside's drug problem. Determined to stop drug use both inside and outside the school, parents organized and took the following actions:

- Formed parent-peer groups to learn about the drug problem and agreed to set curfews, to chaperone parties, and to monitor their children's whereabouts. They held community meetings to discuss teenage drug use with law enforcement agents, judges, clergy, and physicians.
- Established a coalition that lobbied successfully for State antidrug and antiparaphernalia laws.
- Offered assistance to the schools. The school acted on the parents' recommendations to provide drug prevention education to teachers, update its prevention curriculum, and establish a new behavior code. Parents also helped design a system for monitoring tardiness and provided volunteer help to teachers.

The new principal, Bill Rudolph, also committed his energy and expertise to fighting the drug problem. Rudolph established a tough policy for students who were caught possessing or dealing drugs. "Illegal drug offenses do not lead to detention hall but to court," he stated. When students were caught, he immediately called the police and then notified their parents. Families were given the names of drug education programs and were urged to participate. One option available to parents was drug education offered by other parents.

Today, Northside is a different school. In 1984-85, only three drug-related incidents were reported. Academic achievement has improved dramatically; student test scores have risen every year since the 1977-78 school year. Scores on standardized achievement tests rose to well above the national average,

placing Northside among the top schools in the district for the 1984-85 school year.

Parents

Supervision

Recommendation #2:

Help children to resist peer pressure to use drugs by supervising their activities, knowing who their friends are, and talking with them about their interests and problems.

When parents take an active interest in their children's behavior, they provide the guidance and support children need to resist drugs. Parents can do this by:

- Knowing their children's whereabouts, activities, and friends.
- Working to maintain and improve family communications and listening to their children.
- Being able to discuss drugs knowledgeably. It is far better for children to obtain their information from their parents than from their peers or on the street.
- Communicating regularly with the parents of their children's friends and sharing their knowledge about drugs with other parents.
- Being selective about their children's viewing of television and movies that portray drug use as glamorous or exciting.

In addition, parents can work with the school in its efforts to fight drugs by:

- Encouraging the development of a school policy with a clear no-drug message.
- Supporting administrators who are tough on drugs.
- Assisting the school in monitoring students' attendance and planning and chaperoning school-sponsored activities.

- Communicating regularly with the school regarding their children's behavior.

Fact Sheet

Signs of Drug Use

Changing patterns of performance, appearance, and behavior may signal use of drugs. The items in the first category listed below provide direct evidence of drug use; the items in the other categories offer signs that may indicate drug use. For this reason, adults should look for extreme changes in children's behavior, changes that together form a pattern associated with drug use.

Signs of Drugs and Drug Paraphernalia

- Possession of drug-related paraphernalia such as pipes, rolling papers, small decongestant bottles, or small butane torches.
- Possession of drugs or evidence of drugs, peculiar plants, or butts, seeds, or leaves in ashtrays or clothing pockets.
- Odor of drugs, smell of incense or other "cover-up" scents.

Identification with Drug Culture

- Drug-related magazines, slogans on clothing.
- Conversation and jokes that are preoccupied with drugs.
- Hostility in discussing drugs.

Signs of Physical Deterioration

- Memory lapses, short attention span, difficulty in concentration.
- Poor physical coordination, slurred or incoherent speech.
- Unhealthy appearance, indifference to hygiene and grooming.
- Bloodshot eyes, dilated pupils.

Dramatic Changes in School Performance

- Distinct downward turns in student's grades—not just from C's to F's, but from A's to B's and C's. Assignments not completed.
- Increased absenteeism or tardiness.

Changes in Behavior

- Chronic dishonesty (lying, stealing, cheating). Trouble with the police.
- Changes in friends, evasiveness in talking about new ones.
- Possession of large amounts of money.
- Increasing and inappropriate anger, hostility, irritability, secretiveness.
- Reduced motivation, energy, self-discipline, self-esteem.
- Diminished interest in extracurricular activities and hobbies.

Parents

Recognizing Drug Use

Recommendation #3:

Be knowledgeable about drugs and signs of drug use. When symptoms are observed, respond promptly.

Parents are in the best position to recognize early signs of drug use in their children. In order to prepare themselves, they should:

- Learn about the extent of the drug problem in their community and in their children's schools.
- Be able to recognize signs of drug use.
- Meet with parents of their children's friends or classmates about the drug problem at their school. Establish a means of sharing information to determine which children are using drugs and who is supplying them.

Parents who suspect their children are using drugs often must deal with their own emotions of anger, resentment, and guilt. Frequently they deny the evidence and postpone confronting their children. Yet the earlier a drug problem

is found and faced, the less difficult it is to overcome. If parents suspect their children are using drugs, they should:

- Devise a plan of action. Consult with school officials and other parents.
- Discuss their suspicions with their children in a calm, objective manner. Do not confront a child while he is under the influence of drugs.
- Impose disciplinary measures that help remove the child from those circumstances where drug use might occur.
- Seek advice and assistance from drug treatment professionals and from a parent group. (For further information, consult the resources section, pages 59-73.)

WHAT SCHOOLS CAN DO

Schools

Assessing the Problem

Recommendation #4:

Determine the extent and character of drug use and establish a means of monitoring that use regularly.

School personnel should be informed about the extent of drugs in their school. School boards, superintendents, and local public officials should support school administrators in their efforts to assess the extent of the drug problem and to combat it.

In order to guide and evaluate effective drug prevention efforts, schools need to:

- Conduct anonymous surveys of students and school personnel and consult with local law enforcement officials to identify the extent of the drug problem.
- Bring together school personnel to identify areas where drugs are being used and sold.

- Meet with parents to help determine the nature and extent of drug use.
- Maintain records on drug use and sale in the school over time, for use in evaluating and improving prevention efforts. In addition to self-reported drug use patterns, records may include information on drug-related arrests and school discipline problems.
- Inform the community, in nontechnical language, of the results of the school's assessment of the drug problem.

**Anne Arundel County School District,
Annapolis, Maryland**

In response to evidence of a serious drug problem in 1979-80, the school district of Anne Arundel County implemented a strict new policy covering both elementary and secondary students. It features notification of police, involvement of parents, and use of alternative education programs for offenders. School officials take the following steps when students are found using or possessing drugs:

- The school notifies the police, calls the parents, and suspends students for 1 to 5 school days.
- The special assistant to the superintendent meets with the students and parents. In order to return to school, students must state where and how they obtained the drugs. The students must also agree either to participate in the district's Alternative Drug Program at night, while attending school during the day, or to enroll in the district's Learning Center (grades 7-8) or evening high school (grades 9-12). Students, accompanied by their parents, must also take at least 5 hours of counseling. Parents are also required to sign a Drug/Alcohol Reinstatement Form.
- If students fail to complete the Alternative Drug Program, they are transferred to the Learning Center or to evening high school.
- Students are expelled if caught using or possessing drugs a second time.

Distribution and sale of drugs are also grounds for expulsion, and a student expelled for these offenses is ineligible to participate in the Alternative Drug Program.

As a result of these steps, the number of drug offenses has declined by 58 percent, from 507 in 1979-80 to 211 in 1984-85.

Schools

Setting Policy

Recommendation #5:

Establish clear and specific rules regarding drug use that include strong corrective actions.

School policies should clearly establish that drug use, possession, and sale on the school grounds and at school functions will not be tolerated. These policies should apply to both students and school personnel, and may include prevention, intervention, treatment, and disciplinary measures.

School policies should:

- Specify what constitutes a drug offense by defining (1) illegal substances and paraphernalia, (2) the area of the school's jurisdiction, for example, the school property, its surroundings, and all school-related events, such as proms and football games, and (3) the types of violations (drug possession, use, and sale).
- State the consequences for violating school policy; as appropriate, punitive action should be linked with treatment and counseling. Measures that schools have found effective in dealing with first-time offenders include:
 - a required meeting of parents and the student with school officials, concluding with a contract signed by the student and parents in which (1) they acknowledge a drug problem, (2) the student agrees not to use drugs, and to participate in drug counseling or a rehabilitation program.

—suspension, assignment to an alternative school, in-school suspension, after-school or Saturday detention with close supervision and demanding academic assignments.

—referral to a drug treatment expert or counselor.

—notification of police.

Penalties for repeat offenders and for sellers may include expulsion, legal action, and referral for treatment.

- Describe procedures for handling violations, including:
 - legal issues associated with disciplinary actions—confidentiality, due process, and search and seizure—and how they apply.
 - responsibilities and procedures for reporting suspected incidents that identify the proper authorities to be contacted and the circumstances under which incidents should be reported.
 - procedures for notifying parents when their child is suspected of or caught with drugs.
 - procedures for notifying police.
- Enlist legal counsel to ensure that the policy is drafted in compliance with applicable Federal, State, and local laws.
- Build community support for the policy. Hold open meetings where views can be aired and differences resolved.

**Eastside High School,
Paterson, New Jersey**

Eastside High School is located in an inner-city neighborhood and enrolls 3,200 students. Before 1982, drug dealing was rampant. Intruders had easy access to the school and sold drugs on the school premises. Drugs were used in school stairwells and bathrooms. Gangs armed with razors and knives roamed the hallways.

A new principal, Joe Clark, was instrumental in ridding the school of drugs and violence. Hired in 1982, Clark established order, enlisted the help of police officers in drug prevention education, and raised academic standards. Among the actions he took were:

- Establishing and enforcing strict penalties for breaking the discipline code. In reference to drugs, he stated emphatically, "If you're smoking or dealing, you're out." He acted on his warning, removing 300 students from the roll in his first year for discipline and drug-related violations.
- Increasing the involvement of local police officers, known as the "Brothers in Blue," who visited the school regularly to speak to students about the importance of resisting drugs.
- Raising academic standards and morale by emphasizing the importance of doing well, requiring a "C" average for participation in athletics, and honoring student achievements.

As a result of actions such as these, Eastside has been transformed. Today there is no evidence of drug use in the school. Intruders no longer have access to the school; hallways and stairwells are safe. Academic performance has improved substantially: in 1981-82, only 56 percent of the 9th graders passed the State's basic skills test in math; in 1984-85, 91 percent passed. In reading, the percentage of 9th graders passing the State basic skills test rose from 40 percent in 1981-82 to 67 percent in 1984-85.

Schools

Enforcing Policy

Recommendation #6:

Enforce established policies against drug use fairly and consistently. Implement security measures to eliminate drugs on school premises and at school functions.

Ensure that everyone understands the policy and the procedures that will be followed in case of infractions. Make copies of the school policy available to all parents, teachers, and students, and take other steps to publicize the policy.

Impose strict security measures to bar access to intruders and prohibit student drug trafficking. Enforcement policies should correspond to the severity of the school's drug problem. For example:

- Officials can require students to carry hall passes, supervise school grounds and hallways, and secure assistance of law enforcement officials, particularly to help monitor areas around the schools.
- For a severe drug problem, officials can use security personnel to monitor closely school areas where drug sale and use are known to occur; issue mandatory identification badges for school staff and students; request the assistance of local police to help stop drug dealing; and, depending on applicable law, develop a policy that permits periodic searches of student lockers.

Review enforcement practices regularly to ensure that penalties are uniformly and fairly applied.

Fact Sheet

Legal Questions on Search and Seizure

In 1985, the Supreme Court for the first time analyzed the application in the public school setting of the Fourth Amendment prohibition of unreasonable searches and seizures. The Court sought to craft a rule that would balance the need of school authorities to maintain order and the privacy rights of students. The questions in this section summarize the decisions of the Supreme Court and of lower Federal courts. School officials should consult with legal counsel in formulating their policies.

What legal standard applies to school officials who search students and their possessions for drugs?

The Supreme Court has held that school officials may institute a search if there are "reasonable grounds" to believe that the search will reveal evidence that the student has violated or is violating either the law or the rules of the school.

Do school officials need a search warrant to conduct a search for drugs?

No, not if they are carrying out the search independent of the police and other law enforcement officials. A more stringent legal standard may apply if law enforcement officials are involved in the search.

How extensive can a search be?

The scope of the permissible search will depend on whether the measures used during the search are reasonably related to the purpose of the search and are not excessively intrusive in light of the age and sex of the student being searched. The more intrusive the search, the greater the justification that will be required by the courts.

Do school officials have to stop a search when they find the object of the search?

Not necessarily. If a search reveals items suggesting the presence of other evidence of crime or misconduct, the school official may continue the search. For example, if a teacher is justifiably searching a student's purse for cigarettes and finds rolling papers, it will be reasonable (subject to any local policy to the contrary) for the teacher to search the rest of the purse for evidence of drugs.

Can school officials search student lockers?

Reasonable grounds to believe that a particular student locker contains evidence of a violation of the law or school rules will generally justify a search of that locker. In addition, some courts have upheld written school policies that authorize school officials to inspect student lockers at any time.

Fact Sheet

Legal Questions on Suspension and Expulsion

The following questions and answers briefly describe several Federal requirements that apply to the use of suspension and expulsion as disciplinary tools in public schools. These may not reflect all laws, policies, and judicial precedents applicable to any given school district. School officials should consult with legal counsel to determine the application of these laws in their schools and to ensure that all legal requirements are met.

What Federal procedural requirements apply to suspension or expulsion?

- The Supreme Court has held that students facing suspension or expulsion from school are entitled under the U.S. Constitution to the basic due process protections of notice and an opportunity to be heard. The nature and formality of the "hearing" to be provided depend on the severity of the sanction being imposed.
- A formal hearing is not required when a school seeks to suspend a student for 10 days or less. Due process in that situation requires only that:
 - the school inform the student, either orally or in writing, of the charges and of the evidence to support those charges;
 - the school give the student an opportunity to deny the charges and present his or her side of the story;
 - as a general rule, the notice to the student and a rudimentary hearing should precede a suspension unless a student's presence poses a continuing danger to persons or property, or threatens to disrupt the academic process. In such cases, the notice and rudimentary hearing should follow as soon as possible after the student's removal.
- More formal procedures may be required for suspensions longer than 10 days and for expulsions. In addition, Federal law and regulations establish special rules governing suspensions and expulsions of handicapped students.
- States and local school districts may require additional procedures.

Can students be suspended or expelled from school for use, possession, or sale of drugs?

Generally, yes. A school may suspend or expel students in accordance with the terms of its discipline policy. A school policy may provide for penalties of varying severity, including suspension or expulsion, to respond to drug-related offenses. It is helpful to be explicit about the types of offenses that will be punished and about the penalties that may be imposed for particular types of offenses (e.g., use, possession, or sale of drugs). Generally, State and local law will determine the range of sanctions permitted.

(For a more detailed discussion of legal issues, see pages 49-58.)

Fact Sheet

Tips for Selecting Drug Prevention Materials

In evaluating drug prevention materials, keep the following points in mind:

Check the date of publication.

Material published before 1980 may be outdated and even recently published materials may be inaccurate.

Look for "warning flag" phrases and concepts.

These expressions, many of which appear frequently in "pro-drug" material, falsely imply that there is a "safe" use of mind-altering drugs: experimental use, recreational use, social use, controlled use, responsible use, use/abuse.

"Mood-altering" is a deceptive euphemism for mind-altering.

The implication of the phrase "mood-altering" is that only temporary feelings are involved. The fact is that mood changes are biological changes in the brain.

"There are no 'good' or 'bad' drugs, just improper use":

This is a popular semantic camouflage in pro-drug literature. It confuses young people and minimizes the distinct chemical differences among substances.

"The child's own decision":

Parents cannot afford to leave such hazardous choices to their children. It is the parents' responsibility to do all in their power to provide the information and the protection to assure their children a drug-free childhood and adolescence.

Be alert for contradictory messages.

Often an author gives a pro-drug message and then covers his tracks by including "cautions" about how to use drugs.

Make certain the health consequences revealed in current research are adequately described.

Literature should make these facts clear: The high potency of marijuana on the market today makes it more dangerous than ever; THC, a psychoactive ingredient in marijuana, is fat soluble and its accumulation in the body has many adverse biological effects; cocaine can cause death and is one of the most addictive drugs known to man.

Demand material that sets positive standards of behavior for children.

The message conveyed must be an expectation that children can say no to drugs. The publication and its message must provide the information and must support caring family involvement to reinforce the child's courage to stay drug free.

Schools

Teaching About Drug Prevention

Recommendation #7:

Implement a comprehensive drug prevention curriculum from kindergarten through grade 12, teaching that drug use is wrong and harmful and supporting and strengthening resistance to drugs.

A model program would have these main objectives:

- To value and maintain sound personal health.
- To respect laws and rules prohibiting drugs.
- To resist pressures to use drugs.
- To promote student activities that are drug free and offer healthy avenues for student interests.

In developing a program, school staff should:

- Determine curriculum content appropriate for the school's drug problem and grade levels.
- Base the curriculum on an understanding of why children try drugs in order to teach them how to resist pressures to use drugs.
- Review existing materials for possible adaptation. State and national organizations—and some lending libraries—that have an interest in drug prevention make available lists of materials.

In implementing a program, school staff should:

- Include all grades. Effective drug education is cumulative.
- Teach about drugs in health education classes, and reinforce this curriculum with appropriate materials in such classes as social studies and science.
- Develop expertise in drug prevention through training. Teachers should be knowledgeable about drugs, be personally committed to opposing drug use, and be skilled at eliciting participation by students.

(For more detailed information on topics and learning activities to incorporate in a drug prevention program, see pages 44-48.)

Samuel Gompers Vocational-Technical High School, New York City

Samuel Gompers Vocational-Technical High School is located in the South Bronx in New York City. Enrollment is 1,500 students; 95 percent are from low-income families.

In June, 1977, an article in the *New York Times* likened Gompers to a "war zone." Students smoked marijuana and sold drugs both inside the school and on the school grounds; the police had to be called in daily.

In 1979, the school board hired a new principal, Victor Herbert, who turned the school around. Herbert established order, implemented a drug awareness program, involved the private sector, and instilled pride in the school among students. Among the actions he took:

- In cooperation with the police captain, Herbert arranged for the same two police officers to respond to all calls from Gompers. These officers came to know the Gompers students; eventually, students confided in the police about drug sales occurring near the school. Police also helped school staff patrol the school grounds and were stationed at a nearby park known for drug trafficking.
- Herbert stationed security guards and faculty outside each bathroom. He organized "hall sweeps" in the middle of class periods and no longer allowed students to leave the premises at lunch time.
- Herbert established a drug education program for teachers, students, and parents that emphasized recognizing the signs of drug use. He also implemented other drug awareness programs that involved the police and community organizations.
- He persuaded companies, such as IBM, to hire students for afterschool and summer work. Students had to be drug free to participate. This requirement demonstrated to students that employers would not tolerate drug use.
- A computerized attendance system was installed to notify parents of their child's absence. Newly hired paraprofessionals, called "family assistants," worked to locate absentees and bring them back to school.

The results of Herbert's actions were remarkable. In 1985, there were no known incidents of students using alcohol or drugs in school or on school grounds, and only one incident of violence was reported. The percentage of students reading at or above grade level increased from 45 percent in 1979-80 to 67 percent in 1984-85.

Enlisting the Community

Recommendation #8:

Reach out to the community for support and assistance in making the school's antidrug policy and program work. Develop collaborative arrangements in which school personnel, parents, school boards, law enforcement officers, treatment organizations, and private groups can work together to provide necessary resources.

School officials should recognize that they cannot solve the drug problem alone. They need to get the community behind their efforts by taking action to:

- Increase community understanding of the problem through meetings, media coverage, and education programs.
- Build public support for the policy; develop agreement on the goals of a school drug policy, including prevention and enforcement goals.
- Educate the community about the effects and extent of the drug problem.
- Strengthen contacts with law enforcement agencies through discussions about the school's specific drug problems and ways they can assist in drug education and enforcement.
- Call on local professionals, such as physicians and pharmacists, to share their expertise on drug abuse as class lecturers.
- Mobilize the resources of community groups and local businesses to support the program.

WHAT STUDENTS CAN DO

Students

Learning the Facts

Recommendation #9.

Learn about the effects of drug use, the reasons why drugs are harmful, and ways to resist pressures to try drugs. Students can arm themselves with the knowledge to resist drug use by:

- Learning about the effects and risks of drugs.
- Learning the symptoms of drug use and the names of organizations and individuals who are available to help when friends or family members are in trouble.
- Understanding the pressures to use drugs and ways to counteract them.
- Knowing the school rules on drugs and ways to help make the school policy work.
- Knowing the school procedures for reporting drug offenses.
- Knowing the laws on drug use and the penalties, for example, for driving under the influence of drugs and alcohol. Understanding how the laws protect individuals and society.
- Developing skill in communicating their opposition to drugs and their resolve to say no.

R. H. Watkins High School of Jones County, Mississippi, has developed a pledge, excerpted below, which sets forth the duties and responsibilities of student counselors in its peer counseling program.

Responsibility Pledge for a Peer Counselor, R. H. Watkins High School

As a drug education peer counselor you have the opportunity to help the youth of our community develop to their full potential without the interference of illegal drug use. It is a responsibility you must not take lightly. Therefore, please read the following responsibilities you will be expected to fulfill next school year and discuss them with your parents or guardians.

Responsibilities of a Peer Counselor

Understand and be able to clearly state your beliefs and attitudes about drug use among teens and adults.

Remain drug free.

Maintain an average of C or better in all classes.

Maintain a citizenship average of B or better.

Participate in some club or extracurricular activity that emphasizes the positive side of school life.

Successfully complete training for the program, including, for example, units on the identification and symptoms of drug abuse, history and reasons for drug abuse, and the legal/economic aspects of drug abuse.

Successfully present monthly programs on drug abuse in each of the elementary and junior high schools of the Laurel City school system, and to community groups, churches, and statewide groups as needed.

Participate in rap sessions or individual counseling sessions with Laurel City school students.

Attend at least one Jones County Drug Council meeting per year, attend the annual Drug Council Awards Banquet, work in the Drug Council Fair exhibit and in any Drug Council workshops, if needed.

Grades and credit for Drug Education will be awarded on successful completion of and participation in all the above-stated activities.

Student's Signature

Parent's or Guardian's Signature

Students

Helping Fight Drug Use

Recommendation #10:

Use an understanding of the danger posed by drugs to help other students avoid them. Encourage other students to resist drugs, persuade those using drugs to seek help, and report those selling drugs to parents and the school principal.

Although students are the primary victims of drug use in the schools, drug use cannot be stopped or prevented unless students actively participate in this effort.

Students can help fight drug use by:

- Participating in open discussions about the extent of the problem at their own school.
- Supporting a strong school antidrug policy and firm, consistent enforcement of rules.
- Setting a positive example for fellow students and speaking forcefully against drug use.
- Teaching other students, particularly younger ones, about the harmful effects of drugs.
- Encouraging their parents to join with other parents to promote a drug-free environment outside of school. Some successful parent groups have been started by the pressure of a son or daughter who was concerned about drugs.

- Becoming actively involved in efforts to inform the community about the drug problem.
- Starting a drug-resistance club or other activity to create positive, challenging ways for young people to have fun without drugs. Obtaining adult sponsorship for the group and publicizing its activities.
- Encouraging friends who have a drug problem to seek help and reporting persons selling drugs to parents and the principal.

**Greenway Middle School,
Phoenix, Arizona**

Greenway Middle School is in a rapidly growing area of Phoenix. The student population of 950 is highly transient.

Greenway developed a comprehensive drug prevention program in the 1979-80 school year. The program provides strict sanctions for students caught with drugs, but its main emphasis is on prevention. Features include:

- Teaching students about drugs in science classes; mini-units on why people use drugs and what treatment resources are available to drug users; distributing and discussing current literature on drugs; sponsoring a 1-day Prevention Fair in which community experts talk to students about drug prevention.
- Enrolling students and staff in the "All Star" training program where they learn how to resist peer pressure, make decisions for themselves, and develop plans for personal and school improvement.
- Providing counselor training for specially selected students; drug counseling for students who are using drugs.

Under Greenway's drug policy, first-time offenders who are caught using or possessing drugs are suspended for 6 to 10 days. First-time offenders who are caught selling drugs are subject to expulsion. The policy is enforced in close cooperation with the local police department.

As a result of the Greenway program, drug use and disciplinary referrals declined dramatically between 1979-80 and 1984-85. The number of drug-related referrals to the school's main office decreased by 78 percent; overall, discipline-related referrals decreased by 62 percent.

WHAT COMMUNITIES CAN DO

Project DARE, Los Angeles, California

The police department and school district have teamed up to create DARE (Drug Abuse Resistance Education), now operating in 405 schools from kindergarten through grade 8 in Los Angeles. Fifty-two carefully selected and trained frontline officers are teaching students to say no to drugs, build their self-esteem, manage stress, resist prodrug media messages, and develop other skills to keep them drug free. In addition, officers spend time on the playground at recess so that students can get to know them. Meetings are held with teachers, principals, and parents to discuss the curriculum.

Research has shown that DARE has improved students' attitudes about themselves, increased their sense of responsibility for themselves and to police, and strengthened resistance to drugs. For example, before the DARE program began, 51 percent of fifth-grade students equated drug use with having more friends. After training, only 8 percent reported this attitude.

DARE has also changed parent attitudes through an evening program to teach parents about drugs, the symptoms of drug use, and ways to increase family communication. Before DARE, 32 percent of parents thought that it was all right for children to drink alcohol at a party as long as adults were present. After DARE, no parents reported such a view. Before DARE, 61 percent thought that there was nothing parents could do about their children's use of drugs; only 5 percent said so after the program.

As a result of the high level of acceptance by principals, teachers, the community, and students, DARE has spread from 50 elementary schools in 1983 to all 347 elementary and 58 junior high schools in Los Angeles. DARE will soon be fully implemented in Virginia.

Communities

Providing Support

Recommendation #11:

Help schools fight drugs by providing them with the expertise and financial resources of community groups and agencies.

Law enforcement agencies and the courts can:

- Provide volunteers to speak in the schools about the legal ramifications of drug use. Officers can encourage students to cooperate with them to stop drug use.
- Meet with school officials to discuss drug use in the school, share information on the drug problem outside of school, and help school officials in their investigations.

Social service and health agencies can:

- Provide volunteers to speak in the school about the effects of drugs.
- Meet with parents to discuss symptoms of drug use and to inform them about counseling resources.
- Provide the schools with health professionals to evaluate students who may be potential drug users.
- Provide referrals to local treatment programs for students who are using drugs.
- Establish and conduct drug counseling and support groups for students.

Businesses can:

- Speak in the schools about the effects of drug use on employment.
- Provide incentives for students who participate in drug prevention programs and lead drug-free lives.
- Help schools obtain curriculum materials for their drug prevention program.
- Sponsor drug-free activities for young people.

Parent groups can:

- Mobilize others through informal discussions, door-to-door canvassing, and school meetings to ensure that students get a consistent no-drug message at home, at school, and in the community.
- Contribute volunteers to chaperone student parties and other activities.

Print and broadcast media can:

- Educate the community about the nature of the drug problem in their schools.
- Publicize school efforts to combat the problem.

Operation SPECDA, New York City

Operation SPECDA (School Program to Educate and Control Drug Abuse) is a cooperative program of the New York City Board of Education and the police department. It operates in 154 schools, serving students and their parents from kindergarten through grade 12. SPECDA has two aims: education and enforcement. Police help provide classes and presentations on drug abuse in the schools. At the same time, they concentrate enforcement efforts within a two-block radius of schools to create a drug-free corridor for students.

The enforcement aspect has had some impressive victories. Police have made 7,500 arrests to date, 66 percent in the vicinity of elementary schools. In

addition, they have seized narcotics valued at more than \$1 million, as well as \$1 million in cash and 139 firearms.

SPECDA provides a simultaneous focus on education. Carefully selected police officers team with drug abuse counselors to lead discussion sessions throughout the fifth and sixth grades. The discussions emphasize the building of good character and self-respect; the dangers of drug use; civic responsibility and the consequences of actions; and constructive alternatives to drug abuse.

Similar presentations are made in school assemblies for students from kindergarten through grade 4 and in the junior and senior high schools. An evening workshop for parents helps them reinforce the SPECDA message.

An evaluation of participants in SPECDA demonstrates that a majority of the students have become more aware of the dangers of drug use, and show strong positive attitudes toward SPECDA police officers and drug counselors. When interviewed, students have indicated a strengthened resolve to resist drugs.

Communities

Tough Law Enforcement

Recommendation #12:

Involve local law enforcement agencies in all aspects of drug prevention: assessment, enforcement, and education. The police and courts should have well-established and mutually supportive relationships with the schools.

Community groups can:

- Support school officials who take a strong position against drug use.
- Support State and local policies to keep drugs and drug paraphernalia away from schoolchildren.
- Build a community consensus in favor of strong penalties for persons convicted of selling drugs, particularly for adults who have sold drugs to children.

- Encourage programs to provide treatment to juvenile first-offenders while maintaining tough penalties for repeat offenders and drug sellers.

Law enforcement agencies, in cooperation with schools, can:

- Establish the procedures each will follow in school drug cases.
- Provide expert personnel to participate in prevention activities from kindergarten through grade 12.
- Secure areas around schools and see that the sale and use of drugs are stopped.
- Provide advice and personnel to help improve security in the school or on school premises.

CONCLUSION

Drugs threaten our children's lives, disrupt our schools, and shatter families. Drug-related crimes overwhelm our courts, social service agencies, and police. This situation need not and must not continue.

Across America schools and communities *have* found ways to turn the tide in the battle against drugs. The methods they have used and the actions they have taken are described in this volume. We know what works. We know that drug use can be stopped.

But we also know that defeating drugs is not easy. We cannot expect the schools to do the job without the help of parents, police, the courts, and other community groups. Drugs will only be beaten when all of us work together to deliver a firm, consistent message to those who would use or sell drugs: a message that illegal drugs will not be tolerated. It is time to join in a national effort to achieve schools without drugs.

SPECIAL SECTIONS

TEACHING ABOUT DRUG PREVENTION

Teaching About Drug Prevention: Sample Topics and Learning Activities

An effective drug prevention curriculum covers a broad set of education objectives. This section presents a model program for consideration by State and local school authorities who have the responsibility to design a curriculum that meets local needs and priorities. The program consists of four objectives, plus sample topics and learning activities.

OBJECTIVE 1: To value and maintain sound personal health; to understand how drugs affect health.

An effective drug prevention education program instills respect for a healthy body and mind and imparts knowledge of how the body functions, how personal habits contribute to good health, and how drugs affect the body.

At the early elementary level, children learn how to care for their bodies. Knowledge about habits, medicine, and poisons lays the foundation for learning about drugs. Older children begin to learn about the drug problem and study those drugs to which they are most likely to be exposed. The curriculum for secondary school students is increasingly drug-specific as students learn about the effects of certain drugs on their bodies and on adolescent maturation.

Sample topics for elementary school:

- The role of nutrition, medicine, and health care professionals in preventing and treating disease.
- The difficulties of recognizing which substances are safe to eat or touch; ways to learn whether a substance is safe: consulting with an adult, reading labels.
- The effects of poisons on the body; the effects of medicine on body chemistry: the wrong drug may make a person ill.
- The nature of habits: their conscious and unconscious development.

Sample topics for secondary school:

- Stress: how the body responds to stress; how drugs increase stress.
- The chemical properties of drugs.
- The effects of drugs on the circulatory, digestive, nervous, reproductive, and respiratory systems. The effects of drugs on adolescent development.
- Patterns of substance abuse: the progressive effects of drugs on the body and mind.
- The drug problem at school, among teenagers, and in society.

Children tend to be present-oriented and are likely to feel invulnerable to long-term effects of drugs. For this reason, they should be taught about the short-term effects of drug use—such as impact on appearance, alertness, and coordination—as well as about the cumulative effects.

Sample learning activities for elementary school:

- Make a coloring book depicting various substances. Color only those items that are safe to eat.
- Use puppets to dramatize what can happen when chemicals are used.
- Write stories about what to do if a stranger offers candy, pills, or a ride.
- Discuss options in class.

- Try, for a limited time, to break a bad habit. The teacher emphasizes that it is easier not to start a bad habit than to break one.

Sample learning activities for high school:

- Discuss the properties of drugs with community experts: physicians, scientists, pharmacists, or law enforcement officers.
- Interview social workers in drug treatment centers. Visit an open meeting of Alcoholics Anonymous or Narcotics Anonymous. These activities should be open only to mature students; careful preparation and debriefing are essential.
- Research the drug problem at school, in the community, or in the sports and entertainment fields.
- Design a true/false survey about drug myths and facts; conduct the survey with classmates and analyze the results.
- Develop an accessible lending library on drugs, well stocked with up-to-date and carefully chosen materials.

When an expert visits a class, both the class and the expert should be prepared in advance. Students should learn about the expert's profession and prepare questions to ask during the visit. The expert should know what the objectives of the session are and how the session fits into previous and subsequent learning. The expert should participate in a discussion or classroom activity, not simply appear as a speaker.

OBJECTIVE 2: To respect laws and rules prohibiting drugs.

The program teaches children to respect rules and laws as the embodiment of social values and as tools for protecting individuals and society. It provides specific instruction about laws concerning drugs.

Students in the early grades learn to identify rules and to understand their importance, while older students learn about the school drug code and laws

regulating drugs.

Sample topics for elementary school:

- What rules are and what would happen without them.
- What values are and why they should guide behavior.
- What responsible behavior is.
- Why it is wrong to take drugs.

Sample topics for secondary school:

- Student responsibilities in promoting a drug-free school.
- Local, State, and Federal laws on controlled substances; why these laws exist and how they are enforced.
- Legal and social consequences of drug use. Penalties for driving under the influence of alcohol or drugs. The relationship between drugs and other crimes.

Sample learning activities for elementary school:

- Use stories and pictures to identify rules and laws in everyday life (e.g., lining up for recess).
- Imagine how to get to school in the absence of traffic laws; try to play a game that has no rules.
- Name things important to adults and then list rules they have made about these things. (This activity helps explain values.)
- Solve a simple problem (e.g., my sister hits me; my math grades are low). Discuss which solutions are best and why.
- Discuss school drug policies with the principal and other staff members. Learn how students can help make the policy work better.
- Explain the connection between drug users, drug dealers, and drug traffickers and law enforcement officers whose lives are placed at risk or lost in their efforts to stop the drug trade.

Sample learning activities for secondary school:

- Resolve hypothetical school situations involving drug use. Analyze the consequences for the school, other students, and the individuals involved.
- Collect information about accidents, crimes, and other problems related to drugs. Analyze how the problem might have been prevented and how the incident affected the individuals involved.
- Conduct research projects. Interview members of the community such as attorneys, judges, police officers, State highway patrol officers, and insurance agents about the effects of drug use on the daily lives of teenagers and their families.
- Draft a legislative petition proposing enactment of a State law on drug use. Participate in a mock trial or legislative session patterned after an actual trial or debate. Through these activities, students learn to develop arguments on behalf of drug laws and their enforcement.

OBJECTIVE 3: To recognize and resist pressures to use drugs.

Social influences play a key role in encouraging children to try drugs. Pressures to use drugs come from internal sources, such as a child's desire to feel included in a group or to demonstrate independence, and external influences, such as the opinions and example of friends, older children, and adults, and media messages.

Students must learn to identify these pressures. They must then learn how to counteract messages to use drugs and gain practice in saying no. The education program emphasizes influences on behavior, responsible decision-making, and techniques for resisting pressures to use drugs.

Sample topics for elementary through high school:

- The influence of popular culture on behavior.
- The influence of peers, parents, and other important individuals on a student's behavior. How the need to feel accepted by others influences behavior.

- Ways to make responsible decisions and deal constructively with disagreeable moments and pressures.
- Reasons for not taking drugs.
- Situations in which students may be pressured into using drugs.
- Ways of resisting pressure to use drugs.
- Benefits of resisting pressure to use drugs.

Sample learning activities for elementary through high school:

- Describe recent personal decisions. In small groups, decide what considerations influenced the decision (e.g., opinions of family or friends, beliefs, desire to be popular) and analyze choices and consequences.
- Examine ads for cigarettes, over-the-counter drugs, and alcohol, deciding what images are being projected and whether the ads are accurate.
- Read stories about famous people who stood up for their beliefs in the face of opposition. Students can discuss how these people withstood the pressure and what they accomplished.
- Give reasons for not taking drugs. Discuss with a health educator or drug counselor the false arguments for using drugs. Develop counter-arguments in response to typical messages or pressures on behalf of drug use.
- Given a scenario depicting pressure to use drugs, act out ways of resisting (simply refusing, giving a reason, leaving the scene, etc.). Students then practice these techniques repeatedly. Demonstrate ways of resisting pressures, using older students specially trained as peer teachers.
- Present scenarios involving drug-related problems (e.g., learning that another student is selling drugs, a sibling using drugs; or being offered a drive home by a friend under the influence of drugs). Students practice what they would do and discuss to whom they would turn for help. Teachers should discuss and evaluate the appropriateness of student responses.
- Discuss how it feels to resist pressures to take drugs. Hold a poster contest to depict the benefits derived both from not using and from saying no (e.g.,

being in control, increased respect from others, self-confidence).

OBJECTIVE 4: To promote activities that reinforce the positive, drug-free elements of student life.

School activities that provide students opportunities to have fun without drugs—and to contribute to the school community—build momentum for peer pressure not to use drugs. These school activities also nurture positive examples by giving older students opportunities for leadership related to drug prevention.

Sample activities:

- Make participation in school activities dependent on an agreement not to use drugs.
- Ensure that drugs will not be available at school-sponsored activities or parties. Plan these events carefully to be certain that students have attractive alternatives to drug use.
- Give students opportunities for leadership. They can be trained to serve as peer leaders in drug prevention programs, write plays, or design posters for younger students. Activities such as these provide youthful role models who demonstrate the importance of not using drugs. Youth training programs are available that prepare students to assist in drug education and provide information on how to form drug-free youth groups.
- Form action teams for school improvement with membership limited to students who are drug free. These action teams campaign against drug use, design special drug-free events, conduct and follow up on surveys of school needs, help teachers with paperwork, tutor other students, or improve the appearance of the school. Through these activities, students develop a stake in their school, have the opportunity to serve others, and have positive reasons to reject drug use.

HOW THE LAW CAN HELP

Federal law accords school officials broad authority to regulate student conduct and supports reasonable and fair disciplinary action. The Supreme Court recently reaffirmed that the constitutional rights of students in school are not "automatically coextensive with the rights of adults in other settings." [1] Rather, recognizing that "in recent years ... drug use and violent crime in the schools have become major social problems," the Court has emphasized the importance of effective enforcement of school rules. [2] On the whole, a school "is allowed to determine the methods of student discipline and need not exercise its discretion with undue timidity." [3]

An effective campaign against drug use requires a basic understanding of legal techniques for searching and seizing drugs and drug-related material, for suspending and expelling students involved with drugs, and for assisting law enforcement officials in the prosecution of drug offenders. Such knowledge will both help schools identify and penalize students who use or sell drugs at school and enable school officials to uncover the evidence needed to support prosecutions under Federal and State criminal laws that contain strong penalties for drug use and sale. In many cases, school officials can be instrumental in successful prosecutions.

In addition to the general Federal statutes that make it a crime to possess or distribute a controlled substance, there are special Federal laws designed to protect children and schools from drugs:

An important part of the Comprehensive Crime Control Act of 1984 makes it a *Federal crime to sell drugs in or near a public or private elementary or secondary school*. Under this new "*schoolhouse*" law, sales within 1,000 feet of school grounds are punishable by up to *double* the sentence that would apply if the sale occurred elsewhere. Even more serious mandatory penalties are available for repeat offenders. [4]

Distribution or sale to minors of controlled substances is also a *Federal crime*. When anyone over age 21 sells drugs to anyone under 18, the seller runs the risk that he will receive up to *double* the sentence that would apply to a sale to an adult. Here too, more serious penalties can be imposed on repeat offenders. [5]

By working with Federal and State prosecutors in their area, schools can help to ensure that these laws and others are used to make children and schools off-limits to drugs.

The following pages describe in general terms the Federal laws applicable to the development of an effective school drug policy. This handbook is not a compendium of all laws that may apply to a school district, and it is not intended to provide legal advice on all issues that may arise. School officials must recognize that many legal issues in the school context are also governed, in whole or in part, by State and local laws, which, given their diversity, cannot be covered here. Advice should be sought from legal counsel in order to understand the applicable laws and to ensure that the school's policies and actions make full use of the available methods of enforcement.

Most private schools, particularly those that receive little or no financial assistance from public sources and are not associated with a public entity, enjoy a greater degree of legal flexibility with respect to combating the sale and use of illegal drugs. Depending on the terms of their contracts with enrolled students, such schools may be largely free of the restrictions that normally apply to drug searches or the suspension or expulsion of student drug users. Private school officials should consult legal counsel to determine what enforcement measures may be available to them.

School procedures should reflect the available legal means for combating drug use. These procedures should be known to and understood by school administrators and teachers as well as students, parents, and law enforcement officials. Everyone should be aware that school authorities have broad power within the law to take full, appropriate, and effective action against drug offenders. Additional sources of information on legal issues in school drug policy are listed at the end of this handbook.

SEARCHING FOR DRUGS WITHIN THE SCHOOL

In some circumstances, the most important tool for controlling drug use is an effective program of drug searches. School administrators should not condone the presence of drugs *anywhere* on school property. The presence of any drugs or drug-related materials in school can mean only one thing—that drugs are being used or distributed in school. Schools committed to fighting drugs should do everything they can to determine whether school grounds are being used to facilitate the possession, use, or distribution of drugs and to prevent such crimes.

In order to institute an effective drug search policy in schools with a substantial problem, school officials can take several steps. First, they can identify the specific areas in the school where drugs are likely to be found or used. Student lockers, bathrooms, and "smoking areas" are obvious candidates. Second, school administrators can clearly announce *in writing* at the *beginning* of the school year that these areas will be subject to unannounced searches and that students should consider such areas "public" rather than "private." The more clearly a school specifies that these portions of the school's property are public, the less likely it is that a court will conclude that students retain any reasonable expectation of privacy in these places and the less justification will be needed to search such locations.

School officials should, therefore, formulate and disseminate to all students and staff a written policy that will permit an effective program of drug searches. Courts have usually upheld locker searches where schools have established written policies under which the school retains joint control over student lockers, maintains duplicate or master keys for all lockers, and reserves the right to inspect lockers at any time. [6] While this has not become established law in every part of the country, it will be easier to justify locker searches in schools that have such policies. Moreover, the mere existence of such policies can have a salutary effect. If students know that their lockers may be searched, drug users will find it much more difficult to maintain quantities of drugs in school.

The effectiveness of such searches may be improved with the use of specially trained dogs. Courts have generally held that the use of dogs to detect drugs on or in *objects* such as lockers, ventilators, or desks as opposed to persons, is not

a "search" within the meaning of the Fourth Amendment. [7] Accordingly, school administrators are generally justified in using dogs in this way.

It is important to remember that any illicit drugs and drug-related items discovered at school are evidence that may be used in a criminal trial. School officials should be careful, first, to protect the evidentiary integrity of such seizures by making sure that the items are obtained in permissible searches, since unlawfully acquired evidence will not be admissible in criminal proceedings. Second, school officials should work closely with local law enforcement officials to preserve, in writing, the nature and circumstances of any seizure of drug contraband. In a criminal prosecution, the State must prove that the items produced as evidence in court are the same items that were seized from the suspect. Thus, the State must establish a "chain of custody" over the seized items which accounts for the possession of the evidence from the moment of its seizure to the moment it is introduced in court. School policy regarding the disposition of drug-related items should include procedures for the custody and safekeeping of drugs and drug-related materials prior to their removal by the police and procedures for recording the circumstances regarding the seizure.

Searching Students

In some circumstances, teachers or other school personnel will wish to search a student whom they believe to be in possession of drugs. The Supreme Court has stated that searches may be carried out according to "the dictates of reason and common sense." [8] The Court has recognized that the need of school authorities to maintain order justifies searches that might otherwise be unreasonable if undertaken by police officers or in the larger community. Thus the Court held in 1985 that school officials, unlike the police, do *not* need "probable cause" to conduct a search. Nor do they need a search warrant. [9]

Under the Supreme Court's ruling:

- School officials may institute a search if there are "reasonable grounds" to believe that the search will reveal evidence that the student has violated or is violating either the law or the rules of the school.

- he extent of the permissible search will depend on whether the measures used are reasonably related to the purpose of the search and are not excessively intrusive in light of the age and sex of the student.
- School officials are not required to obtain search warrants when they carry out searches independent of the police and other law enforcement officials. A more stringent legal standard may apply if law enforcement officials are involved in the search.

Interpretation of "Reasonable Grounds"

Lower courts are beginning to interpret and apply the "reasonable grounds" standard in the school setting. From these cases it appears that courts will require more than general suspicion, curiosity, rumor, or a hunch to justify searching a student or his possessions. Factors that will help sustain a search include the observation of specific and describable behavior or activities leading one reasonably to believe that a given student is engaging in or has engaged in prohibited conduct. The more specific the evidence in support of searching a particular student, the more likely the search will be upheld. For example, courts using a "reasonable grounds" (or similar) standard have upheld the right of school officials to search:

- A student's purse, after a teacher saw her smoking in a restroom and the student denied having smoked or being a smoker. [\[10\]](#)
- A student's purse, after several other students said that she had been distributing firecrackers. [\[11\]](#)
- A student's pockets, based on a phone tip about drugs from an anonymous source believed to have previously provided accurate information. [\[12\]](#)

Scope of the Permissible Search

School officials are authorized to conduct searches within reasonable limits. The Supreme Court has described two aspects of these limits. First, when officials conduct a search, they must use only measures that are reasonably

related to the purpose of the search; second, the search may not be excessively intrusive in light of the age or sex of the student. For example, if a teacher believes she has seen one student passing a marijuana cigarette to another student, she might reasonably search the students and any nearby belongings in which the students might have tried to hide the drug. If it turns out that what the teacher saw was a stick of gum, she would have no justification for any further search for drugs.

The more intrusive the search, the greater the justification that will be required by the courts. A search of a student's jacket or bookbag can often be justified as reasonable. At the other end of the spectrum, strip searches are considered a highly intrusive invasion of an individual's privacy and are viewed with disfavor by the courts (although even these searches have been upheld in certain extraordinary circumstances).

School officials do not necessarily have to stop a search if they find what they are looking for. If the search of a student reveals items that create reasonable grounds for suspecting that he may also possess other evidence of crime or misconduct, the school officials may continue the search. For example, if a teacher justifiably searches a student's purse for cigarettes and finds rolling papers like those used for marijuana cigarettes, it will then be reasonable for the teacher to search the rest of the purse for other evidence of drugs.

Consent

If a student consents to a search, the search is permissible, regardless of whether there would otherwise be reasonable grounds for the search. To render such a search valid, however, the student must give consent knowingly and voluntarily.

Establishing whether the student's consent was voluntary can be difficult, and the burden is on the school officials to prove voluntary consent. If a student agrees to be searched out of fear or as a result of other coercion, that consent will probably be found invalid. Similarly, if school officials indicate that a student must agree to a search or if the student is very young or otherwise unaware that he has the right to object, his consent will also be held invalid.

School officials may find it helpful to explain to students that they need not consent to a search. In some cases, standard consent forms may be useful.

If a student is asked to consent to a search and refuses, that refusal does not mean that the search may not be conducted. Rather, in the absence of consent, school officials retain the authority to conduct a search when there are reasonable grounds to justify it, as described previously.

Special Types of Student Searches

Schools with severe drug problems may occasionally wish to resort to more intrusive searches, such as the use of trained dogs or urinalysis to screen students for drug use. The Supreme Court has yet to address these issues. The following paragraphs explain the existing rulings on these subjects by other courts:

- *Specially trained dogs.* The few courts that have considered this issue disagree as to whether the use of a specially trained dog to detect drugs on students constitutes a search within the meaning of the Fourth Amendment. Some courts have held that a dog's sniffing of a student is a search, and that, in the school setting, individualized grounds for reasonable suspicion are required in order for such a "sniff-search" to be held constitutional. [13] Under this standard, a blanket search of a school's entire student population by specially trained dogs would be prohibited.

At least one other court has held that the use of trained dogs does not constitute a search, and has permitted the use of such dogs without individualized grounds for suspicion. [14] Another factor that courts may consider is the way that the dogs detect the presence of drugs. In some instances, the dogs are merely led down hallways or classroom aisles. In contrast, having the dogs actually touch parts of the students' bodies is more intrusive and would likely require specific justification.

Courts have generally held that the use of specially trained dogs to detect drugs on objects, as opposed to persons, is not a search within the meaning of the Fourth Amendment. Therefore, school officials may often be able to use dogs to inspect student lockers and school property. [15]

- *Drug testing.* The use of urinalysis or other tests to screen students for drugs is a relatively new phenomenon and the law in this area is still evolving. The few courts that have considered this issue so far have not upheld urinalysis to screen public school students for drugs. [16] The permissibility of drug testing of students has not yet been determined under all circumstances, although drug testing of adults has been upheld in the criminal law setting.

SUSPENSION AND EXPULSION

A school policy may lawfully provide for penalties of varying severity, including suspension and expulsion, to respond to drug-related offenses. The Supreme Court has recently held that because schools "need to be able to impose disciplinary sanctions for a wide range of unanticipated conduct disruptive of the educational process," a school's disciplinary rules need not be as detailed as a criminal code. [17] Nonetheless, it is helpful for school policies to be explicit about the types of offenses that will be punished and about the penalties that may be imposed for each of these (e.g., use, possession, or sale of drugs). State and local law will usually determine the range of sanctions that is permissible. In general, courts will require only that the penalty imposed for drug-related misconduct be rationally related to the severity of the offense.

School officials should not forget that they have jurisdiction to impose punishment for some drug-related offenses that occur off campus. Depending upon State and local laws, schools are often able to punish conduct at off-campus, school-sponsored events as well as off-campus conduct that has a direct and immediate effect on school activities.

Procedural Guidelines

Students facing suspension or expulsion from school are entitled under the U.S. Constitution and most State constitutions to common sense due process protections of notice and an opportunity to be heard. Because the Supreme

Court has recognized that a school's ability to maintain order would be impeded if formal procedures were required every time school authorities sought to discipline a student, the Court has held that the nature and formality of the "hearing" will depend on the severity of the sanction being imposed.

A formal hearing is not required when a school seeks to suspend a student for 10 days or less. [18] The Supreme Court has held that due process in that situation requires only that:

- The school must inform the student, either orally or in writing, of the charges against him and of the evidence to support those charges.
- The school must give the student an opportunity to deny the charges and present his side of the story.
- As a general rule, this notice and rudimentary hearing should precede a suspension. However, a student whose presence poses a continuing danger to persons or property or an ongoing threat of disrupting the academic process may be immediately removed from school. In such a situation, the notice and rudimentary hearing should follow as soon as possible.

The Supreme Court has also stated that more formal procedures may be required for suspensions longer than 10 days and for expulsions. Although the Court has not established specific procedures to be followed in those situations, other Federal courts [19] have set the following guidelines for expulsions. These guidelines would apply to suspensions longer than 10 days as well:

- The student must be notified in writing of the specific charges against him which, if proven, would justify expulsion. testimony on his behalf.
- The student should be given the names of the witnesses against him and an oral or written report on the facts to which each witness will testify. testimony on his behalf.
- The student should be given the opportunity to present his own defense against the charges and to produce witnesses or testimony on his behalf.

Many States have laws governing the procedures required for suspensions and expulsions. Because applicable statutes and judicial rulings vary across the

country, local school districts may enjoy a greater or lesser degree of flexibility in establishing procedures for suspensions and expulsions.

School officials must also be aware of the special procedures that apply to suspension or expulsion of handicapped students under Federal law and regulations. [\[20\]](#)

Effect of Criminal Proceedings Against a Student

A school may usually pursue disciplinary action against a student regardless of the status of any outside criminal prosecution. That is, Federal law does not require the school to await the outcome of the criminal prosecution before initiating proceedings to suspend or expel a student or to impose whatever other penalty is appropriate for the violation of the school's rules. In addition, a school is generally free under Federal law to discipline a student when there is evidence that the student has violated a school rule, even if a juvenile court has acquitted (or convicted) the student or if local authorities have declined to prosecute criminal charges stemming from the same incident. Schools may wish to discuss this subject with counsel.

Effect of Expulsion

State and local law will determine the effect of expelling a student from school. Some State laws require the provision of alternative schooling for students below a certain age. In other areas, expulsion may mean the removal from public schools for the balance of the school year or even the permanent denial of access to the public school system.

CONFIDENTIALITY OF EDUCATION RECORDS

To rid their schools of drugs, school officials will periodically need to report drug-related crimes to police and to assist local law enforcement authorities in

detecting and prosecuting drug offenders. In doing so, schools will need to take steps to ensure compliance with Federal and State laws governing confidentiality of student records.

The Federal law that addresses this issue is the Family Educational Rights and Privacy Act (FERPA), [21] which applies to any school that receives Federal funding and which limits the disclosure of certain information about students that is contained in education records. [22] Under FERPA, disclosure of information in education records to individuals or entities other than parents, students, and school officials is only permissible in specified situations. [23] In many cases, unless the parents or an eligible student [24] provides written consent, FERPA will limit a school's ability to turn over education records or to disclose information from them to the police. Such disclosure is permitted, however, if (1) it is required by a court order or subpoena, or (2) it is warranted by a health or safety emergency. In the first of these two cases, reasonable efforts must be made to notify the student's parents before the disclosure is made. FERPA also permits disclosure if a State law enacted before November 19, 1974, specifically requires disclosure to State and local officials.

Schools should be aware, however, that because FERPA only governs information in education records, it does not limit disclosure of other information. Thus, school employees are free to disclose any information of which they become aware through personal observation. For example, a teacher who witnesses a drug transaction may, when the police arrive, report what he witnessed. Similarly, evidence seized from a student during a search is not an education record and may be turned over to the police without constraint.

State laws and school policies may impose additional, and sometimes more restrictive, requirements regarding the disclosure of information about students. Since this area of the law is complicated, it is especially important that an attorney be involved in formulating school policy under FERPA and applicable State laws.

OTHER LEGAL ISSUES

Lawsuits Against Schools or School Officials

Disagreements between parents or students and school officials about disciplinary measures usually can be resolved informally. Occasionally, however, a school's decisions and activities relating to disciplinary matters are the subject of lawsuits by parents or students against administrators, teachers, and school systems. For these reasons, it is advisable that school districts obtain adequate insurance coverage for themselves and for *all* school personnel for liability arising from disciplinary actions.

Suits may be brought in Federal or State court; typically, they are based on a claim that a student's constitutional or statutory rights have been violated. Frequently, these suits will seek to revoke the school district's imposition of some disciplinary measure, for example, by ordering the reinstatement of a student who has been expelled or suspended. Suits may also attempt to recover money damages from the school district or the employee involved, or both, however, court awards of money damages are extremely rare. Moreover, although there can be no guarantee of a given result in any particular case, courts in recent years have tended to discourage such litigation.

In general, disciplinary measures imposed reasonably and in accordance with established legal requirements will be upheld by the courts. As a rule, Federal judges will not substitute their interpretations of school rules or regulations for those of local school authorities or otherwise second-guess reasonable decisions by school officials. [25] In addition, school officials are entitled to a qualified good faith immunity from personal liability for damages for having violated a student's Federal constitutional or civil rights. [26] When this immunity applies, it shields school officials from any personal liability for money damages. Thus, as a general matter, personal liability is very rare, because officials should not be held personally liable unless their actions are clearly unlawful, unreasonable, or arbitrary.

When a court does award damages, the award may be "compensatory" or "punitive." Compensatory damages are awarded to compensate the student for injuries actually suffered as a result of the violation of his or her rights and cannot be based upon the abstract "value" or "importance" of the constitutional rights in question. [27] The burden is on the student to prove that he suffered

actual injury as a result of the deprivation. Thus, a student who is suspended, but not under the required procedures, will not be entitled to compensation if he would have been suspended had a proper hearing been held. If the student cannot prove that the failure to hold a hearing itself caused him some compensable harm, then the student is entitled to no more than nominal damages, such as \$1.00. [28] "Punitive damages" are awarded to punish the perpetrator of the injury. Normally, punitive damages are awarded only when the conduct in question is malicious, unusually reckless, or otherwise reprehensible.

Parents and students can also claim that actions by a school or school officials have violated State law. For example, it can be asserted that a teacher "assaulted" a student in violation of a State criminal law. The procedures and standards in actions involving such violations are determined by each State. Some States provide a qualified immunity from tort liability under standards similar to the "good faith" immunity in Federal civil rights actions. Other States provide absolute immunity under their law for actions taken in the course of a school official's duties.

Nondiscrimination in Enforcement of Discipline

Federal law applicable to programs or activities receiving Federal financial assistance prohibits school officials who are administering discipline from discriminating against students on the basis of race, color, national origin, or sex. Schools should therefore administer their discipline policies even-handedly, without regard to such considerations. Thus, as a general matter, students with similar disciplinary records who violate the same rule in the same way should be treated similarly. For example, if male and female students with no prior record of misbehavior are caught together smoking marijuana, it would not, in the absence of other relevant factors, be advisable for the school to suspend the male for 10 days while imposing only an afternoon detention on the female. Such divergent penalties for the same offense may be appropriate, however, if, for example, the student who received the harsher punishment had a history of misconduct or committed other infractions after this first confrontation with school authorities.

School officials should also be aware of and adhere to the special rules and procedures for the disciplining of handicapped students under the Education of the Handicapped Act, 20 USC § 1400-20, and Section 504 of the Rehabilitation Act of 1973, 29 USC § 794.

(For legal citations, see reference section.)

RESOURCES

Specific Drugs and Their Effects

CANNABIS

Effects

All forms of cannabis have negative physical and mental effects. Several regularly observed physical effects of cannabis are a substantial increase in the heart rate, bloodshot eyes, a dry mouth and throat, and increased appetite.

Use of cannabis may impair or reduce short-term memory and comprehension, alter sense of time, and reduce ability to perform tasks requiring concentration and coordination, such as driving a car. Research also shows that students do not retain knowledge when they are "high." Motivation and cognition may be altered, making the acquisition of new information difficult. Marijuana can also produce paranoia and psychosis.

Because users often inhale the unfiltered smoke deeply and then hold it in their lungs as long as possible, marijuana is damaging to the lungs and pulmonary system. Marijuana smoke contains more cancer-causing agents than tobacco.

Long-term users of cannabis may develop psychological dependence and require more of the drug to get the same effect. The drug can become the center of their lives.

Type	What is it called?	What does it look like?	How is it used?
Marijuana	Pot	Dried parsley	Eaten
	Grass	mixed with stems	Smoked
	Weed	that may include	
	Reefer	seeds	
	Dope		
	Mary Jane		
	Sinsemilla		

	Acapulco Gold Thai Sticks		
Tetrahydro- cannabinol	THC	Soft gelatin capsules	Taken orally Smoked
Hashish	Hash	Brown or black cakes or balls	Eaten Smoked
Hashish Oil	Hash Oil	Concentrated syrupy liquid varying in color from clear to black	Smoked—mixed with tobacco

INHALANTS

Effects

Immediate negative effects of inhalants include nausea, sneezing, coughing, nose-bleeds, fatigue, lack of coordination, and loss of appetite. Solvents and aerosol sprays also decrease the heart and respiratory rates, and impair judgment. Amyl and butyl nitrite cause rapid pulse, headaches, and involuntary passing of urine and feces. Long-term use may result in hepatitis or brain hemorrhage.

Deeply inhaling the vapors, or using large amounts over a short period of time, may result in disorientation, violent behavior, unconsciousness, or death. High concentrations of inhalants can cause suffocation by displacing the oxygen in the lungs or by depressing the central nervous system to the point that breathing stops.

Long-term use can cause weight loss, fatigue, electrolyte imbalance, and muscle fatigue. Repeated sniffing of concentrated vapors over time can permanently damage the nervous system.

Type	What is it called?	What does it look like?	How is it used?
Nitrous Oxide	Laughing gas Whippets	Propellant for whipped cream in aerosol spray can Small 8-gram metal cylinder sold with a balloon or pipe (buzz bomb)	Vapors inhaled
Amyl Nitrite	Poppers Snappers	Clear yellowish liquid in ampules	Vapors inhaled
Butyl Nitrite	Rush Bolt Locker room Bullet Climax	Packaged in small bottles	Vapors inhaled
Chlorohydrocarbons	Aerosol sprays	Aerosol paint cans Containers of cleaning fluid	Vapors inhaled
Hydrocarbons	Solvents	Cans of aerosol propellants, gasoline, glue, paint thinner	Vapors inhaled

STIMULANT: COCAINE

Effects

Cocaine stimulates the central nervous system. Its immediate effects include dilated pupils and elevated blood pressure, heart rate, respiratory rate, and body temperature. Occasional use can cause a stuffy or runny nose, while chronic use can ulcerate the mucous membrane of the nose. Injecting cocaine with unsterile equipment can cause AIDS, hepatitis, and other

diseases. Preparation of freebase, which involves the use of volatile solvents, can result in death or injury from fire or explosion. Cocaine can produce psychological and physical dependency, a feeling that the user cannot function without the drug. In addition, tolerance develops rapidly.

Crack or freebase rock is extremely addictive, and its effects are felt within 10 seconds. The physical effects include dilated pupils, increased pulse rate, elevated blood pressure, insomnia, loss of appetite, tactile hallucinations, paranoia, and seizures.

The use of cocaine can cause death by disrupting the brain's control of the heart and respiration.

Type	What is it called?	What does it look like?	How is it used?
Cocaine	Coke	White crystalline powder, often diluted with other ingredients	Inhaled through nasal passages Injected Smoked
	Snow		
	Flake		
	White		
	Blow		
	Nose Candy		
	Big C		
	Snowbirds		
	Lady		
Crack or cocaine	Crack	Light brown or beige pellets—or crystalline rocks that resemble coagulated soap; often packaged in small vials	Smoked
	Freebase rocks		
	Rock		

OTHER STIMULANTS

Effects

Stimulants can cause increased heart and respiratory rates, elevated blood pressure, dilated pupils, and decreased appetite. In addition, users may experience sweating, headache, blurred vision, dizziness, sleeplessness, and anxiety. Extremely high doses can cause a rapid or irregular heartbeat, tremors, loss of coordination, and even physical collapse. An amphetamine injection creates a sudden increase in blood pressure that can result in stroke, very high fever, or heart failure.

In addition to the physical effects, users report feeling restless, anxious, and moody. Higher doses intensify the effects. Persons who use large amounts of amphetamines over a long period of time can develop an amphetamine psychosis that includes hallucinations, delusions, and paranoia. These symptoms usually disappear when drug use ceases.

Type	What is it called?	What does it look like?	How is it used?
Amphetamines	Speed	Capsules	Taken orally
	Uppers Pills		Injected
	Ups Tablets		Inhaled
	Black Beauties		through nasal passages
	Pep Pills		
	Copilots		
	Bumblebees		
	Hearts		
	Benzedrine		
	Dexedrine		
	Footballs		
	Biphetamine		
Methamphetamines	Crank	White powder	Taken orally
	Crystal	Pills	Injected
	Meth	A rock which	Inhaled
	Crystal	resembles a	through

Additional Stimulants	Methedrine	block of paraffin	nasal
	Speed		passages
	Ritalin	Pills	Taken orally
	Cylert	Capsules	Injected
	Preludin	Tablets	
	Didrex		
	Pre-State		
	Voranil		
	Tenuate		
	Tepanil		
	Pondimin		
	Sandrex		
	Plegine		
	Ionamin		

DEPRESSANTS

Effects

The effects of depressants are in many ways similar to the effects of alcohol. Small amounts can produce calmness and relaxed muscles, but somewhat larger doses can cause slurred speech, staggering gait, and altered perception. Very large doses can cause respiratory depression, coma, and death. The combination of depressants and alcohol can multiply the effects of the drugs, thereby multiplying the risks.

The use of depressants can cause both physical and psychological dependence. Regular use over time may result in a tolerance to the drug, leading the user to increase the quantity consumed. When regular users suddenly stop taking large doses, they may develop withdrawal symptoms ranging from restlessness, insomnia, and anxiety to convulsions and death.

Babies born to mothers who abuse depressants during pregnancy may be physically dependent on the drugs and show withdrawal symptoms shortly after they are born. Birth defects and behavioral problems also may result.

Type	What is it called?	What does it look like?	How is it used?
Barbiturates	Downers	Red, yellow, blue, or red and blue capsules	Taken orally
	Barbs		
	Blue Devils		
	Red Devils		
	Yellow Jacket		
	Yellows		
	Nembutal		
	Seconal		
	Amytal		
	Tuinals		
Methaqualone	Quaaludes	Tablets	Taken orally
	Ludes		
	Sopors		
Tranquilizers	Valium	Tablets Capsules	Taken orally
	Librium		
	Equanil		
	Miltown		
	Serax		
	Tranxene		

HALLUCINOGENS

Effects

Phencyhdine (PCP) interrupts the functions of the neocortex, the section of the brain that controls the intellect and keeps instincts in check. Because the drug blocks pain receptors, violent PCP episodes may result in self-inflicted injuries.

The effects of PCP vary, but users frequently report a sense of distance and estrangement. Time and body movement are slowed down. Muscular

coordination worsens and senses are dulled. Speech is blocked and incoherent.

Chronic users of PCP report persistent memory problems and speech difficulties. Some of these effects may last 6 months to a year following prolonged daily use. Mood disorders—depression, anxiety, and violent behavior—also occur in later stages of chronic use, users often exhibit paranoid and violent behavior and experience hallucinations.

Large doses may produce convulsions and coma, heart and lung failure, or ruptured blood vessels in the brain.

Lysergic acid (LSD), mescaline, and psilocybin cause illusions and hallucinations. The physical effects may include dilated pupils, elevated body temperature, increased heart rate and blood pressure, loss of appetite, sleeplessness, and tremors.

Sensations and feelings may change rapidly. It is common to have a bad psychological reaction to LSD, mescaline, and psilocybin. The user may experience panic, confusion, suspicion, anxiety, and loss of control. Delayed effects, or flashbacks, can occur even after use has ceased.

Type	What is it called?	What does it look like?	How is it used?
Phencyclidine	PCP	Liquid	Taken orally
	Angel Dust	Capsules	Injected
	Loveboat	White crystalline	Smoked—can
	Lovely	powder	be sprayed
	Hog	Pills	on
	Killer Weed		cigarettes, parsley, and marijuana
Lysergic Acid Diethylamide	LSD Acid	Brightly colored tablets	Taken orally Licked off paper

	Green or Red Dragon White Lightning Blue Heaven Sugar Cubes Microdot	Impregnated blotter paper Thin squares of gelatin Clear liquid	Gelatin and liquid can be put in the eyes
Mescaline and Peyote	Mesc Buttons Cactus	Hard brown discs Tablets Capsules	Discs—chewed, swallowed, or smoked Tablets and capsules—taken orally
Psilocybin	Magic mushrooms Mushrooms	Fresh or dried mushroom	Chewed and swallowed

NARCOTICS

Effects

Narcotics initially produce a feeling of euphoria that often is followed by drowsiness, nausea, and vomiting. Users also may experience constricted pupils, watery eyes, and itching. An overdose may produce slow and shallow breathing, clammy skin, convulsions, coma, and possibly death.

Tolerance to narcotics develops rapidly and dependence is likely. The use of contaminated syringes may result in diseases such as AIDS, endocarditis, and hepatitis. Addiction in pregnant women can lead to premature, stillborn, or addicted infants who experience severe withdrawal symptoms.

Type	What is it called?	What does it look like?	How is it used?
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Heroin	Smack	Powder, white to dark brown Tar-like substance	Injected
	Horse		Inhaled
	Brown Sugar		through nasal passages
	Junk		
	Mud		
	Big H		Smoked
Methadone	Black Tar	Solution	
	Dolophine		Taken orally
	Methadose		Injected
Codeine	Amidone	Dark liquid varying in thickness Capsules Tablets	
	Empirin		Taken orally
	compound with Codeine		Injected
	Tylenol		
	with Codeine		
	Codeine		
Morphine	Codeine in cough medicines	White crystals Hypodermic tablets Injectable solutions	
	Pectoral syrup		Injected
			Taken orally
			Smoked
Meperidine	Pethidine	White powder Solution Tablets	Taken orally
	Demerol		Injected
	Mepergan		
Opium	Paregoric	Dark brown chunks Powder	Smoked
	Dover's Powder		Eaten
	Parepectolin		
Other Narcotics	Percocet	Tablets	Taken orally
	Percodan	Capsules	Injected
	Tussionex	Liquid	
	Fentanyl		
	Darvon		
	Talwin		
	Lomotil		

DESIGNER DRUGS

Effects

Illegal drugs are defined in terms of their chemical formulas. To circumvent these legal restrictions, underground chemists modify the molecular structure of certain illegal drugs to produce analogs known as designer drugs. These drugs can be several hundred times stronger than the drugs they are designed to imitate.

The narcotic analogs can cause symptoms such as those seen in Parkinson's disease—uncontrollable tremors, drooling, impaired speech, paralysis, and irreversible brain damage. Analogs of amphetamines and methamphetamines cause nausea, blurred vision, chills or sweating, and faintness. Psychological effects include anxiety, depression, and paranoia. As little as one dose can cause brain damage. The analogs of phencyclidine cause illusions, hallucinations, and impaired perception.

Type	What is it called?	What does it look like?	How is it used?
Analog of Fentanyl (Narcotic)	Synthetic Heroin China White	White powder resembling heroin	Inhaled through nasal passages Injected
Analog of Meperidine (Narcotic)	Synthetic Heroin MPTP (New Heroin) MPPP PEPAP	White powder	Inhaled through nasal passages Injected
Analog of Amphetamines and	MDMA (Ecstasy, XTC,	White powder Tablets Capsules	Taken orally Injected

Methamphetamines (Hallucinogens)	Adam, Essence) MDM STP PMA 2, 5-DMA TMA DOM DOB		Inhaled through nasal passages
Analogs of Phencyclidine (PCP) (Hallucinogens)	PCPy PCE TCP	White powder	Taken orally Injected Smoked

Sources of Information

TOLLFREE INFORMATION

1-800-554-KIDS—THE NATIONAL FEDERATION OF PARENTS FOR DRUG-FREE YOUTH (NFP).

A national information and referral service that focuses primarily on preventing drug addiction in children and adolescents. By referral to the caller's "State networker" or a member group in the caller's community, NFP also provides assistance to anyone concerned about a child already using alcohol or drugs. Call between 9:00 am and 5:00 pm (Eastern time).

1-800-241-9746—PRIDE DRUG INFORMATION LINE.

A national resource and information center, Parents' Resource Institute for Drug Education (PRIDE) refers concerned parents to parent groups in their State or local area, gives information on how parents can form a group in their community, provides telephone consulting and referrals to emergency health centers, and maintains a series of drug information tapes that callers can listen to, free-of-charge, by calling after 5:00 pm.

1-800-638-2045 NATIONAL INSTITUTE ON DRUG ABUSE (NIDA),
— U.S. DEPARTMENT OF HEALTH AND HUMAN
SERVICES.

A national information service that provides technical assistance to individuals and groups wishing to start drug prevention programs. Currently, the program focuses on the establishment of the "Just Say No To Drugs" clubs.

1-800-662-HELP—NIDA HOTLINE.

NIDA Hotline is a confidential information and referral line that directs callers to cocaine abuse treatment centers in the local community. Free materials on drug abuse are also distributed in response to inquiries.

1-800-COCAINE—COCAINE HELPLINE.

A round-the-clock information and referral service. Reformed cocaine addict counselors answer the phones, offer guidance, and refer drug users and parents to local public and private treatment centers and family learning centers.

GENERAL READINGS AND VIDEOTAPES

The publications in the following list that are followed by an (a) or (b) are available from these organizations:

- (a) National Federation of Parents for Drug-Free Youth (NFP), 8730 Georgia Avenue, Suite 200, Silver Spring, MD 20910. Telephone tollfree nationwide 1-800-554-KIDS or, in the Washington, DC area, 585-KIDS.
- (b) Parents' Resource Institute for Drug Education, Inc. (PRIDE), Woodruff Bldg., Suite 1002, 100 Edgewood Avenue, Atlanta, GA 30303. Telephone tollfree nationwide 1-800-241-9746.

Adolescent Drug and Alcohol Abuse, by Donald I. MacDonald, 1984. A 200-page book on stages of drug involvement, drugs, diagnosis, and treatment. The author, a pediatrician who experienced the problem in his own family, addresses physicians and parents. Year Book Publishers, 35 East Wacker Drive, Chicago, IL 60601. Telephone 1-800-621-9262. Paperback, \$15.95.

Courtwatch Manual. A 111-page manual explains the court system, the criminal justice process, Courtwatch activities, and what can be done before and after a criminal is sentenced. Washington Legal Foundation, 1705 N Street, NW, Washington, DC 20036. Enclose \$2.00 for postage and handling.

Drug Use Among American High School Students, College Students, and Other Young Adults: National Trends Through 1985, by Jerald G. Bachman, Lloyd D. Johnson, and Patrick M. O'Malley, 1986. A 237-page book reporting on trends in drug use and attitudes of high school seniors, based on an annual survey conducted since 1975. The National Institute on Drug Abuse, Rockville, MD 20857, ADM 86-1450. Single copies are available free.

Getting Tough on Gateway Drugs, by Robert DuPont, Jr., 1984. A 330-page book describing the drug problem, the drug-dependence syndrome, the gateway drugs, and ways that families can prevent and treat drug problems. American Psychiatric Press Inc., paperback, \$7.95 (a)(b).

Gone Way Down, Teenage Drug-Use Is a Disease, by Miller Newton, 1981. A 72-page book describing the stages of adolescent drug use. American Studies Press, paperback, \$2.95(a).

How to Talk to Your Kids About Growing up Without Drugs and Alcohol. A videotape that offers a practical, easy-to-follow approach to improve family communications, particularly on the subject of adolescent drug and alcohol use. It includes interviews with experts in the field. \$23.00(a).

Kids and Drugs: A Handbook for Parents and Professionals, by Joyce Tobias, 1986. A 96-page handbook about adolescent drug and alcohol use, the effects of drugs and the drug culture, stages of chemical use, parent groups and their creation and maintenance, and resources available to parents and professionals. PANDA Press, 4111 Watkins Trail, Annandale, VA 22003. Telephone (703) 750-9285, paperback, \$3.95 (volume discounts).

Marijuana Alert, by Peggy Mann, 1985. A 526-page book about marijuana: the crisis, health hazards, and activities of parent groups, industry, and government. McGraw-Hill Paperbacks, \$15.95(a)(b).

Not My Kid, by Beth Polson and Miller Newton, 1984. A 224-page guide for parents to aid in prevention, recognition, and treatment of adolescent chemical use. It is especially strong on overcoming denial and recognizing problems, with numerous personal vignettes. Avon Paperback Books, #69997-4, \$2.95; hardcover, \$15.95(b).

Parents, Peers and Pot, by Marsha Manatt, 1979. A 96-page book that recounts the evolution of the drug culture, the development of the first parent peer group, actions for parents to take, and information on marijuana. U.S. Department of Health and Human Services, \$3.00(b).

Parents, Peers and Pot II: Parents in Action, by Marsha Manatt, 1983. A 160-page book that describes the formation of parent groups in rural, suburban, and urban communities. U.S. Department of Health and Human Services, \$1.00(b).

Peer Pressure Reversal, by Sharon Scott, 1985. A 183-page guidebook for parents, teachers, and concerned citizens to enable them to provide peer pressure reversal skills to children. Human Resource Development Center, Amherst, MA, \$9.95(a)(b).

Pot Safari, by Peggy Mann, 1982. For parents and teenagers. Distinguished research scientists are interviewed on the subject of marijuana. Woodmere Press, New York, NY, \$6.95(a)(b).

Strategies for Controlling Adolescent Drug Use, by J. Michael Polich et al., 1984. A 196-page book that reviews the scientific literature on the nature of drug use and the effectiveness of drug law enforcement, treatment, and prevention programs. The Rand Corporation, 1700 Main Street, P.O. Box 2138, Santa Monica, CA 90406-2138, paperback, \$15.00.

Team Up for Drug Prevention With America's Young Athletes. A free booklet for coaches that includes alcohol and drug information, reasons why athletes use drugs, suggested activities for coaches, a prevention program, a survey for athletes and coaches, and sample letters to parents. Drug Enforcement Administration, Public Affairs Staff, 1405 I Street, NW, Washington, DC 20537.

FREE CATALOGS OF DRUG ABUSE PUBLICATIONS

COMP CARE PUBLICATIONS. A source for pamphlets, books, and charts on drug and alcohol abuse, chemical awareness, and self-help. Telephone 1-800-328-3330.

HAZELDEN EDUCATIONAL MATERIALS. A source for pamphlets and books on drug abuse and alcoholism and curriculum materials for drug prevention. Telephone 1-800-328-9000.

SCHOOL AND COMMUNITY RESOURCES

ALCOHOL AND DRUG ABUSE EDUCATION PROGRAM, U.S. Department of Education. The "School Team" approach offered in this program is designed to develop the capability of local schools to prevent and reduce drug and alcohol abuse and associated disruptive behaviors. Five regional centers now provide training and technical assistance to local school districts that apply. For information, write to the U.S. Department of Education, Alcohol and Drug Abuse Education Program, 400 Maryland Avenue, SW, Washington, DC 20202-4101.

AMERICAN COUNCIL ON DRUG EDUCATION (ACDE). ACDE organizes conferences; develops media campaigns; reviews scientific findings; publishes books, a quarterly newsletter, and education kits for physicians, schools, and libraries; and produces films. 5820 Hubbard Drive, Rockville, MD 20852. Telephone (301) 984-5700.

COMMITTEES OF CORRESPONDENCE, INC. This organization provides a newsletter and emergency news flashes that give extensive information on issues, ideas, and contacts. Provides a resource list and sells many pamphlets. Membership is \$15.00. 57 Conant Street, Room 113, Danvers, MA 09123. Telephone (617) 774-2641.

FAMILIES IN ACTION. This organization maintains a drug information center with more than 100,000 documents. Publishes *Drug Abuse Update*, a 16-page newsletter containing abstracts of articles published in medical and academic journals and newspapers throughout the Nation. \$10.00 for 4 issues. 3845 North Druid Hills Road, Suite 300, Decatur, GA 30033. Telephone (404) 325-5799.

NARCOTICS EDUCATION, INC. This organization publishes pamphlets, books, teaching aids, posters, audiovisual aids, and prevention magazines especially good for classroom use: WINNER for preteens and LISTEN for teens. 6830 Laurel Street, NW, Washington, DC 20012. Telephone 1-800-548-8700, or in the Washington, DC area, call 722-6740.

NATIONAL FEDERATION OF PARENTS FOR DRUG-FREE YOUTH (NFP). This national umbrella organization helps parent groups get started and stay in contact. Publishes a newsletter, legislative updates, resource lists for individuals and libraries, brochures, kits, and a *Training Manual for Drug-Free Youth Groups*. It sells many books and offers discounts for group purchases. Conducts an annual conference. Membership: Individual \$15.00, Group \$35.00 (group membership offers tax-exemption). 8730 Georgia Avenue, Suite 200, Silver Spring, MD 20910. Telephone: Washington, DC area 585-KIDS, or toll-free HOTLINE 1-800-554-KIDS.

PARENTS' RESOURCE INSTITUTE FOR DRUG EDUCATION, INC. (PRIDE). This national resource and information center offers consultant services to parent groups, school personnel, and youth groups, and provides a drug use survey service. It conducts an annual conference; publishes a newsletter, youth group handbook, and many other publications; and sells and rents books, films, videos and slide programs. Membership \$8.00. Woodruff Bldg., Suite 1002, 100 Edgewood Avenue, Atlanta, GA 30303. Telephone 1-800-241-9746.

TARGET. Conducted by the National Federation of State High School Associations, an organization of interscholastic activities associations, TARGET offers workshops, training seminars, and an information bank on chemical abuse and prevention. A computerized referral service to substance abuse literature and prevention programs will begin operating in 1987. National Federation of State High School Associations, 11724 Plaza Circle, P.O. Box 20626, Kansas City, MO 64195. Telephone (816) 464-5400.

TOUGHLOVE. This national self-help group for parents, children, and communities emphasizes cooperation, personal initiative, avoidance of blame, and action. It publishes a newsletter and a number of brochures and books and holds workshops across the country each year. P.O. Box 1069, Doylestown, PA 18901. Telephone (215) 348-7090.

U.S. CLEARINGHOUSES. (A publication list is available on request, along with placement on mailing list for new publications. Single copies are free.)

National Institute on Alcoholism and Alcohol Abuse (NIAAA), P.O. Box 2345, Rockville, MD 20852. Telephone (301) 468-2600.

National Institute on Drug Abuse (NIDA), Room 10-A-43, 5600 Fishers Lane, Rockville, MD 20852. Telephone (301) 443-6500.

ADOLESCENT DRUG REHABILITATION PROGRAMS

To find programs, call your city or county substance abuse or mental health agency, hospitals, schools, local hotlines listed in the yellow pages, and the hotlines listed previously. It is best to visit prospective programs and to talk with people who have completed the program.

This section lists several unique national adolescent programs that illustrate the wide diversity of long-term intensive treatment programs available at low cost.

PALMER DRUG ABUSE PROGRAM (PDAP). PDAP is a free program supported by private donations and located mainly in southwestern, western, and midwestern States. It accepts out-of-town clients. It is a long-term out-patient counseling program with daycare capability based on the 12 steps of Alcoholics Anonymous (AA). It uses recuperating users as peer counselors. The program also maintains parent groups that may be attended by parents who do not have children in the PDAP program. National Office: 3300 North A Street, Building 8, Suite 204, Midland, TX 79705. Telephone (915) 687-4311.

STRAIGHT INC. Located in selected States, primarily in the East and Midwest, the program accepts out-of-town clients. The program is a long term, highly structured outpatient program based on the 12 steps of Alcoholics Anonymous (AA). During the early phase of the program, the new client lives in the home of another child advanced in the program. This family system provides positive role modeling, close supervision, and a 24-hour, drug-free environment at low cost. National Office: Straight Inc. National Training and Development Center, 3001 Gandy Blvd., P.O. Box 21686, St. Petersburg, FL 33742. Telephone (813) 576-8929.

TEEN CHALLENGE. This Christian-oriented residential program has facilities across the country and overseas. It serves young people with a variety of behavior problems besides drug use. Occupational skills are taught. National Office: Teen Challenge Training Center, Inc., P.O. Box 198, Rehrersburg, PA 19550. Telephone (717) 933-4181.

READINGS ON LEGAL ISSUES

American Public School Law, Alexander, Kern. 2d ed., St. Paul, MN: West Publishing Company, 1985.

Education Law, Rapp, J. A. New York, NY: Matthew Bender and Company, Inc., 1986. A comprehensive, frequently updated, four-volume, looseleaf treatise on all issues of education law.

The Journal of Law and Education includes articles on a wide range of education issues and includes a section on recent developments in the law. It is published quarterly by Jefferson Law Book Company, P.O. Box 1936, Cincinnati, OH 45201.

The Law of Public Education, Reuter, E. Edmund. 3d ed. Mineola, NY: Foundation Press, 1985.

School Law Bulletin is a quarterly magazine published by the Institute of Government, University of North Carolina at Chapel Hill, Chapel Hill, NC 27514-6059.

School Law News is a newsletter that describes recent developments in the field. It is published by Capitol Publications, Inc., 1300 North 17th Street, Arlington, VA 22209.

The Schools and the Courts contains briefs of selected court cases involving elementary and secondary schools. It is published quarterly by School Administration Publications, P.O. Box 8492, Asheville, NC 28814.

Specialty Law Digest: Education Cases is a monthly compilation of cases and comments published by the Bureau of National Affairs, Inc., Suite 204, 10301 University Avenue, NE, Blaine, MN 55433.

West's Education Law Reporter reprints the full text of Federal and State education law cases. Also included in this series are education articles and

comments selected from legal periodicals. It is published by West Publishing Company, 50 W. Kellogg Blvd., P.O. Box 64526, St. Paul, MN 55164-0526.

OTHER SOURCES OF MATERIALS ON LEGAL ISSUES

COUNCIL OF SCHOOL ATTORNEYS, NATIONAL SCHOOL BOARDS ASSOCIATION provides a national forum on the practical legal problems faced by local public school districts and the attorneys who serve them. This organization conducts programs and seminars and publishes monographs on a wide range of legal issues affecting public school districts. 1680 Duke Street, Alexandria, VA 22314. Telephone (703) 838-NSBA.

NATIONAL ASSOCIATION OF SECONDARY SCHOOL PRINCIPALS (NASSP) publishes periodic newsletters and monographs on legal issues, some of which relate to school discipline and student behavior. 1904 Association Drive, Reston, VA 22091. Telephone (703) 860-0200.

NATIONAL ORGANIZATION ON LEGAL PROBLEMS OF EDUCATION (NOLPE) is a nonprofit, nonadvocacy organization that disseminates information about current issues in school law. NOLPE publishes newsletters, serials, books, and monographs on a variety of school law topics; hosts seminars; and serves as a clearinghouse for information on education law. 3601 Southwest 29th, Suite 223, Topeka, KS 66614. Telephone (913) 273-3550.

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How the Law Can Help

[1] *Bethel v. Fraser*, No. 84 1667, 54 USLW 5054, 5056 (July 7, 1986).

[2] *New Jersey v. TLO*, 105 S. Ct. 733,742 (1985).

[3] 2 J. Rapp, *Education Law*, § 9 06[2] at 9-128 (1986).

[4] See 21 USC 845A.

[5] See 21 USC 845.

[6] See, e.g., *Zamora v. Pomeroy*, 639 F2d 662 (10th Cir. 1981) (locker search conducted after trained police dog indicated presence of marijuana inside).

[7] See, e.g., *Horton v. Goose Creek Independent School District*, 690 F2d 470, 476-77 (5th Cir. 1982) (en banc) (citing cases and so holding), *cert. denied*, 463 U.S. 1207 (1983).

[8] *New Jersey v. TLO*, 105 S. Ct. at 744.

[9] *Id.* at 743.

[10] *Id.* at 745 47.

[11] *Bahr v. Jenkins*, 539 F Supp. 483, 488 (E.D. Ky., 1982).

[12] *Martens v. District No. 220*, 620 F. Supp. 29 (N.D. 111, 1985).

[13] See *Horton v. Goose Creek Independent School District*, 690 F2d at 477 (1982), *Jones v. Latexo Independent School District*, 499 F. Supp. 223 (E.D. Tex., 1980).

[14] See *Doe v. Renfrow*, 475 F. Supp. 1012 (N.D. Ind. 1979), *aff'd in relevant part*, 631 F2d 91 (7th Cir.), *cert. denied*, 451 U.S. 1022 (1981).

[15] *Horton v. Goose Creek Independent School District*, 690 F2d at 477.

[16] See *Odenheim v. Carlstadt East Rutherford Regional School District*, No. C-4305-85E (N.J. Super. Ct. Ch. Div. December 9, 1985), *Anable v. Ford*, Civ. No. 84 6033 (WD Ark. July 15, 1985), *modified*, (WD Ark. September 6, 1985).

[17] *Bethel School District v. Fraser*, 54 USLW at 5054 (July 7, 1986).

[18] *Goss v. Lopez*, 419 U.S. 565 (1975).

[19] One of the leading cases is *Dixon v. Alabama State Board of Education*, 294 F2d 150 (5th Cir.), *cert. denied*, 368 U.S. 930 (1961).

[20] See Education of the Handicapped Act, 20 USC §§ 1400-20, and Section 504 of the Rehabilitation Act of 1973, 29 USC § 794.

[21] See *generally* 20 USC § 1232g and 34 C FR Part 99.

[22] The term "education records" is defined as records that are directly related to a student and maintained by or for the education agency or institution. The term does not include certain records maintained by a separate law enforcement unit of an education agency.

[23] FERPA permits a school to disclose information from education records to its own officials (including teachers) who have a legitimate educational interest in the information. A school may determine in its FERPA policy that one such interest is the need to decide on the appropriateness of discipline.

[24] An eligible student is a student who is 18 or older or attending an institution of postsecondary education.

[25] See *Board of Education v. McCluskey*, 458 U.S. 966, 970-71 (1982) (per curiam), see also *Tarter v. Raybuck*, 742 F.2d 977, 983 (6th Cir. 1984), cert. denied, 105 S. Ct. 1749 (1985).

[26] See *Harlow v. Fitzgerald*, 457 U.S. 800 (1982), *Wood v. Strickland*, 420 U.S. 308 (1975). Under these cases, officials will be immune from personal liability so long as their conduct does not violate clearly established constitutional or Federal statutory rights of which a reasonable person should have known.

[27] *Memphis Community School District v. Stachura*, No. 85-410, 54 USLW 4771 (June 25, 1986).

[28] *Carey v. Piphus*, 435 U.S. 247 (1978).

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